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The
POLITIC
A Yale College Publication

Volume V Issue II
Summer 2004
$5.95

SHOWDOWN 2004

Taking Aim at the Partisan Divide

...us: Sen. Lamar Alexander, Noam Chomsky & Ambassador John O'Leary

thank you

The Politic gratefully acknowledges the support of the Yale Institution for Social and Policy Studies, the Yale Center for International and Area Studies, and International Security Studies. Their generosity and commitment have helped make this magazine possible.

This publication was made possible in part by the Castle Publications Fund. John K. Castle endowed the fund in memory of his ancestor, James Pierpont, one of Yale's original founders.

The Politic would also like to extend its sincere gratitude to its Board of Advisers, whose guidance has played a large role in shaping the development and expanding the influence of The Politic.

The Politic is published in partnership with the Yale Daily News Publishing Company, Inc.

The POLITIC

Editor-in-Chief
Matthew Bloom

Managing Editors
Steven Siger
Jacob Leibenluft

Editor-at-Large
Daniel Bernstein

Layout Director
Tess Monaghan

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Raghav Chopra

International Editor
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P.O. Box 201452
New Haven, CT 06520
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Summer 2004

Dear Reader,

This summer will be different than most in America. It is an election year during a period of unprecedented partisanship. John Kerry and George W. Bush will spend these next months trying to reach every canyon and crag throughout the nation with their rhetoric, seeking to convince untapped voters to join their fervent and mobilized devotees in support of their quests for the presidency. In covering this election year, *The Politic* editorial board seeks to examine the dividing factors in our nation: not just geographical voter trends, but also the history of this division and possible ramifications beyond electoral politics.

With this purpose in mind, we turn first to one of the most polished watchers of our national pulse, Stanley Greenberg. A leading Democratic pollster, Greenberg covers some of the major themes of his recently published book, *The Two Americas*, in our pages. Another Democrat, Senator Mark Dayton of Minnesota, discusses his thoughts on being a member of an evenly divided Congress and sheds light on the pros and cons of the current level of partisanship. Eric Larson, policy analyst at the Rand Corporation, discusses partisanship's influence on the use of military force, revealing what the war in Iraq has meant for today's divided nation. Finally, Yale sophomore Chris Wells uses current scholarship on the divisions in our nation to inform his thoughts on the upcoming presidential election.

Beyond the "50/50 nation" theme, we are pleased to have contributors who are at the tops of their respective fields throughout the magazine. In the National section, William Gale and Peter Orszag of the Brookings Institution discuss President Bush's tax cuts and their effect on the economy, and John Berthoud, president of the National Taxpayers Union, later offers a very different perspective on the same topic. Senator Lamar Alexander of Tennessee sat down to discuss education reform and other pressing issues with *The Politic*. Also, Donald Palmisano, president of the American Medical Association, shares his expert insights on health care in America.

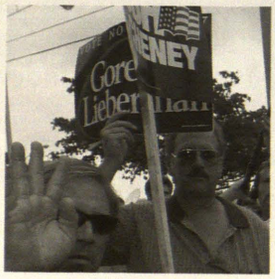
The International section begins with a piece by Denis Chaibi, Yale University visiting fellow and a scholar of the European Union, who writes on the potential ramifications of the U.S. presidential election in Europe. John O'Leary, former U.S. ambassador to Chile, and Tom Parker, former U.K. Special Adviser for Regime Crimes Investigation in Iraq, also contribute in this section in their areas of expertise: free trade and war crimes tribunals respectively.

Another respected expert, Noam Chomsky, professor of linguistics at M.I.T. and leading critic of U.S. foreign policy provided us with an interview about international law and Iraq in the Opinions section. Tom Hayden, author, activist and California legislator also writes in this section before several Yale students add their views on important political issues. On behalf of *The Politic* staff, I hope we have fulfilled our goal of offering a diverse set of scholarly articles and opinions and that this issue will augment your summer reading.

Matthew Bloom, Editor-in-Chief

The POLITIC

FEATURES: The 50/50 Nation



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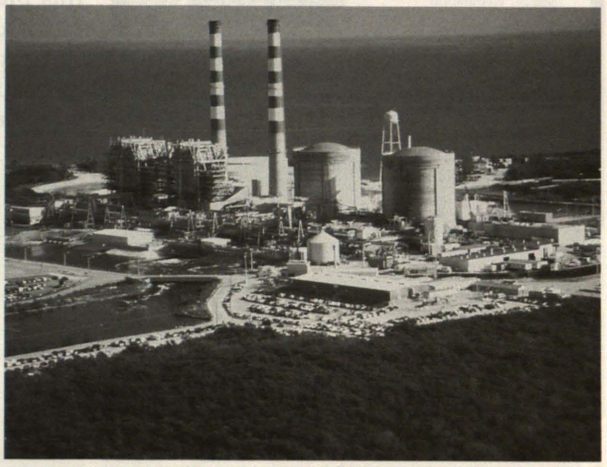

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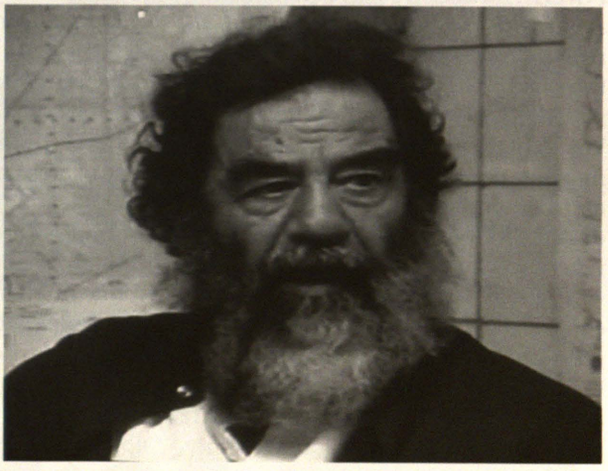

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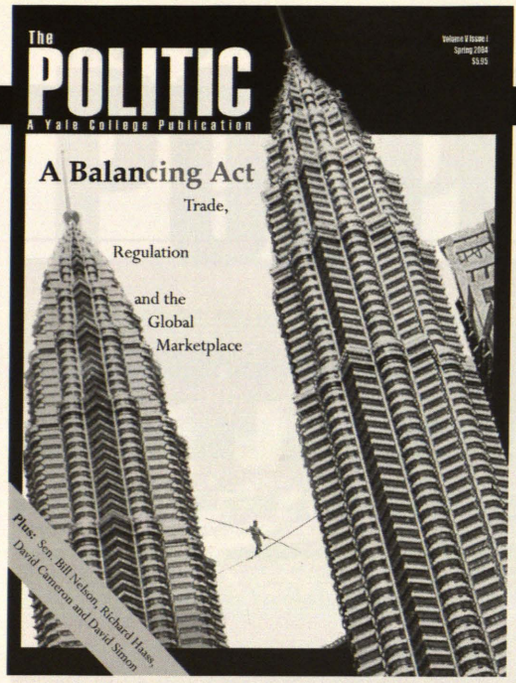

American economic "pie" is divided up. Instead, we should concentrate on how to *enlarge* this pie for the universal benefit. This has, in the past, been accomplished through lower taxes on capital specifically, and the suppliers of investment in general. The lesson to be drawn from this is clear enough: we must first decide upon our economic goals before implementing a strategy best designed to attain them.

Ethan Hutt
Calhoun College '05

Re: Fiscal Crisis and Poverty

To the Editor:

In her article, "Fiscal Crisis and Poverty," Kimberly Hayden makes an argument against tax cuts that is well-reasoned and researched. However, I take issue with the implications that she draws from her conclusions. While higher taxes will provide for a more equitable distribution of income and benefits in the short-run, it hinders the long-run development of this nation's economy.

Tax breaks and benefits for low-income Americans do, indeed, improve quality of life. This is a policy outcome that we want to achieve, though not necessarily through the means outlined in this article. Such policies only serve to increase national consumption, as Hayden notes, not investment. This will spur the economy in the short-run. It is investment and the subsequent increase in the national capital stock, however, that contributes to long-run productivity growth and hence a healthier economic environment for the country.

Upon closer inspection, Hayden's policies focus too much on how the

Re: Antidumping and U.S.-China Relations

To the Editor:

I found Dan Ikenson's piece on "The Stealth Trade War" between the U.S. and China to be particularly compelling because it highlighted a trade channel that is likely to be of greater significance to the United States in the next decade than all of the other U.S. trading partners combined. The question, it seems, is whether U.S. economic interests and Chinese trade interests can be reconciled. As Mr. Ikenson's article pointed out, the way things stand, mutual accord between the U.S. and China can only be possible if the U.S. recognizes the dangers of its current antidumping maneuvers. This is certainly true, but there could be something even more important than the threat of Chinese retaliation against U.S. exporters: attacks on U.S. foreign investment in China, which has become the bread and butter of construction, energy and other U.S. industries struggling to stay afloat. Without delicately handling its treatment of China and its access to such a large and precious market, the U.S. could be running unnecessary risks.

Rachel Juarez
Timothy Dwight College '06

Re: Fiscal Crisis and Poverty

To the Editor:

I would like to offer my disagreement with Alnawaz Jiwa's article "Bring Back the ROTC." Mr. Jiwa brings up a quote by Yale President Charles Seymour, who presided over the university from 1937 to 1951. Seymour felt that "the justification of a university is to be found in the service it gives to the nation." Back then, however, Yale University was not the profoundly international institution that it is today. During the 1930s and 1940s, when Seymour would have made his declaration, Yale's population of international students hovered between 2 and 2.5 percent. Now, during the early 21st century, that figure stands at 9 percent.

Yale's progressive globalization reflects a shift in priorities and a change of focus in how the institution is run. The University has ceased to be a domestic institution and has entered a phase in which its paramount concern must be the furthering of human knowledge and achievement, not the furthering of American interests.

The University should treat the United States military as no different from any other recruiter. Because Yale does not confer special favors upon any other employer who comes to recruit within its walls, there is no reason to grant the United States military such favors. Allowing the ROTC to return would represent a step back for Yale, a shying away from the goal of globalization which it has pursued with such zeal over the past few years. That would be an unfortunate mistake to make.

Adam Shpigel
Saybrook College '07

The Politic welcomes letters to the editors, article submissions, and any and all comments. All articles must be written exclusively for *The Politic*. *The Politic* reserves the right to edit all submissions. Please send all correspondence to editor@thepolitic.org or:

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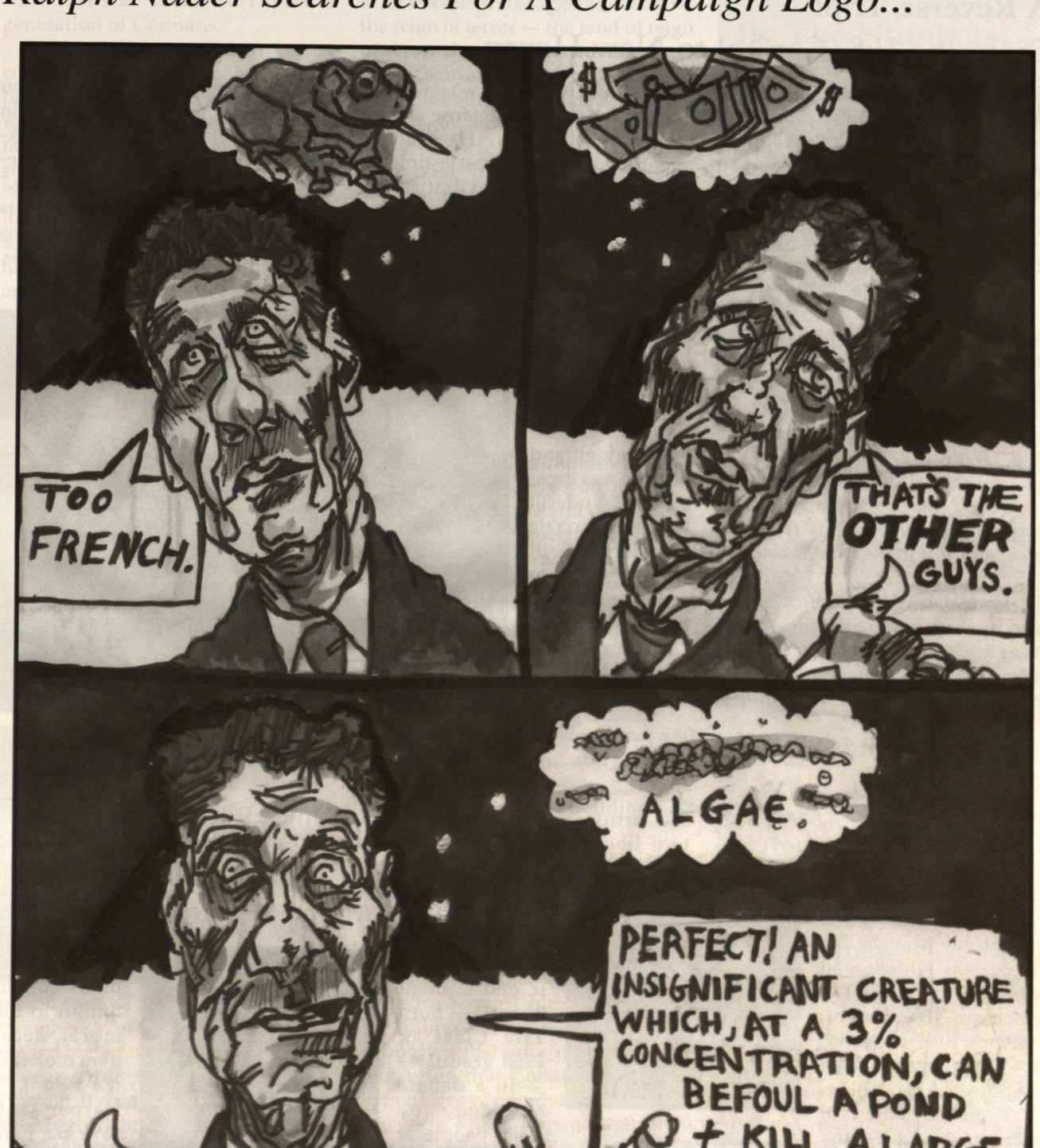
cartoon

Ralph Nader Searches For A Campaign Logo...



by Doug D'Agati

A Reverse Trip: From the U.S. Capitol to New Haven

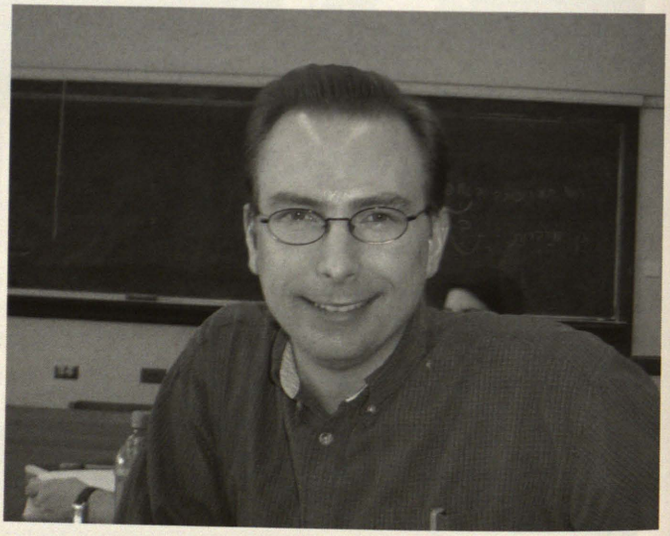
While it is no secret that some of our nation's most prominent public officials hold Yale degrees, members of the current Yale student body have also built fascinating political careers, though you may never know it. Just ask first-year law student Dakota Rudesill.

Following an unsuccessful run for the North Dakota state legislature in 1994, "that most terrible of years for Democrats," Rudesill landed a job in the federal office of Senator Kent Conrad, whom he met on the campaign trail. "I did not lose by design," Rudesill says, "but it was fortunate that I did, because that apparent setback opened the door to a terrific opportunity in my field, defense and international affairs."

In Washington, D.C., Rudesill quickly ascended the Capitol Hill hierarchy, assuming positions of increasing responsibility on the Senator's personal staff before moving in 2001 to the Senate Budget Committee, where he was a senior analyst for national defense and international affairs. He tracked spending, prepared cost estimates, organized hearings and drafted legislation during the turbulent aftermath of the Sept. 11 attacks.

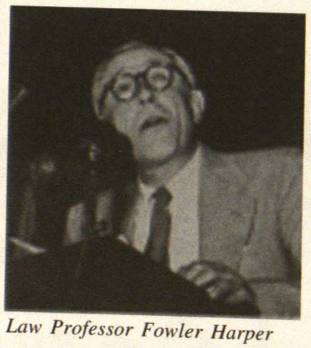
So what brought Rudesill to Yale? "The Senate Budget Committee and life in Washington were very rewarding," he says, "but after nearly a decade on Capitol Hill I wanted to challenge myself and develop new capabilities." Rudesill hopes that a Yale law degree will empower him to promote international law, which is "in the national security interests of our country."

"The same things that enable you to succeed at Yale will benefit you in Washington," Rudesill says. "Thinking analytically, doing your homework and communicating effectively." Rudesill also reminds Yale students who may harbor political ambitions to keep their noses clean, of course, and their rolodexes updated.



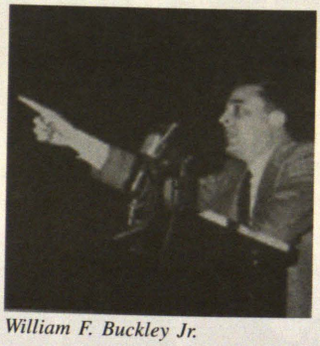
50 Years Ago...

For three years, Republican Senator Joseph McCarthy of Wisconsin had gained popular support and national fame through his efforts to root out what he believed was widespread communism in the American government. By April 1954, however, McCarthy began to meet his political reckoning. That month, the so-called "Army-McCarthy hearings" began, a nationally televised inquiry into wrongdoing by McCarthy that highlighted his tactics.



Law Professor Fowler Harper

Two weeks before the hearings began, the Yale campus was astir with the controversy over McCarthyism. On April 14, 1954, two liberal Yale law professors, Fowler Harper and Vern Countryman, took on McCarthy defenders William F. Buckley Jr. and L. Brent Bozell — both Yale Class of 1950 graduates — in a debate attended by 3,500 people at Woolsey Hall. With the Cold War only a few years old, the atmosphere was tense and the arguments only slightly less heated than the ones that would occur weeks later on Capitol Hill.



William F. Buckley Jr.

Harper opened up the debate with a denunciation of Sen. McCarthy and his tactics, taking aim at the two young conservatives defending the Wisconsin senator in Woolsey Hall. "The worst horror of McCarthyism is the enormous contribution to the moral decadence of this nation," Harper said. "We see here young men of high intellectual and lofty ideals embracing a corrupt and depraved politician who purports to glorify a cause dear to their hearts. He can corrupt a generation of

Americans as Hitler corrupted a generation of Germans."

Buckley, the outspoken young conservative who founded the *National Review* and was already on his way to being one of the most important political thinkers in the nation, responded with similar vigor. "There is nothing that so vividly illustrates the disintegration of our society today as the fact that there has been a wholesale commitment on the issue of McCarthy with a kind of blind ignorance," Buckley said. "It is Senator McCarthy who is so widely blamed by America's leaders for having made it so difficult for the European countries to follow in our crusade against Communism. I submit it is not Senator McCarthy who is responsible for this. It is those who dominate communications media, those who dominate our intellectual journals — those intellectuals who travel to Europe and spread all kinds of falsehoods and exaggerations about the reign of terror — the kind of reign of terror that exists in this room tonight, for example."

The debate dominated campus discussion and the pages of the *Yale Daily News* for days. Harper was criticized by even some anti-McCarthyites for his "sarcasm and invective," as the *News* described it. While the crowd at the forum was decidedly against McCarthy, many students thought the conservatives got the better of their opponents in the debate.

Despite the passionate defense of McCarthy by Buckley and Bozell, they were on the wrong side of history. A few weeks later, Joseph Welch would deliver his famous line to McCarthy: "Sir, have you no sense of decency?" By the end of the year, McCarthy was censured by his peers in the Senate, and the era of McCarthyism was all but over.

18 Months Later, Nordhaus on Target

In late 2002, when talk of war became louder in Washington, Yale economics professor William D. Nordhaus released a forecast of the potential economic costs of a conflict in Iraq. Although his cost estimates consistently ranged higher than the government's, a year after the fall of Saddam Hussein, it seems that Nordhaus may have been right all along.

Nordhaus projected costs based upon several variables such as "the duration of the conflict, the total damage to Iraq, civilian casualties, the potential for unconventional warfare and the spread of conflict outside Iraq." He argued that Congressional estimates of about $50 billion were too low and omitted non-military costs of occupation, which include nation-building and humanitarian assistance.

Nordhaus predicted that a favorable war would cost about $99 billion between 2003 to 2012. If the war happened to be long and unfavorable, the effort could have a price tag of nearly $2 trillion.

Bush's request for an additional $87 billion for the war in Iraq has strongly substantiated Nordhaus' contention that Congressional projections grossly underestimated actual costs. Military spending has increased every year by $150 billion since Bush assumed office. While it is still too early to evaluate all of Nordhaus's projections, the recent rise in costs and continued U.S. presence in Iraq have so far put this Yale professor right on the mark.

By The Numbers:

Yale College Students in Selected Swing States

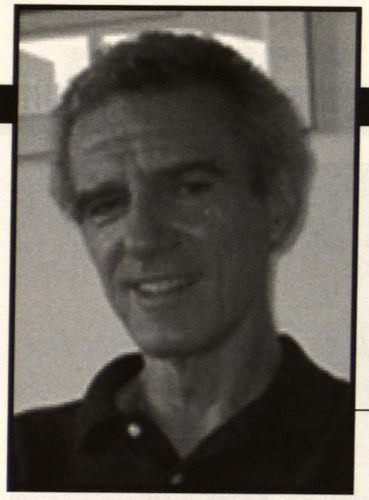
There are **164** Yale College students from **Florida**.
Bush won in 2000 by **537** votes.

There are **33** Yale College students from **New Hampshire**.
Bush won by **2,282** votes.

There are **14** Yale College students from **New Mexico**.
Gore won by **366** votes.

There are **30** Yale College students from **Wisconsin**.
Gore won by **5,396** votes.

There are **18** Yale College students from **Iowa**.
Gore won by **4,130** votes.



spotlight on:

Ray Fair

John M. Musser Professor of Economics at Yale University

Your presidential vote equation has accurately predicted the winner of the last several presidential elections using economic growth data. Based on current numbers, it predicts victory by President Bush in the fall by a sizeable margin. What got you started along this path of research?

This was work that I started in the mid-70s at Princeton. There was some interest in trying to explain voting behavior and one obvious thing to try in explaining voting behavior was whether the economy mattered or not. Using my training as an econometrician, I could examine those types of questions. The main paper I wrote was in 1978, and since that time I've updated the equation each election.

Does economics play the most important role in presidential elections or are there other factors that have a larger influence?

Larger is a little vague in this context. The two things that matter in the equation are the economy and some incumbency information. What's left over goes into the error term; the standard error is about 2.4 percentage points. Everything that we don't account for: foreign policy, social policy, personalities, corruption and whatever else you might think influences voters that's not the economy and not incumbency gets dumped into this error term.

In the past, employment statistics have paralleled some of the other numbers in your equation. Do you think the so-called "jobless recovery" could affect your equation's accuracy?

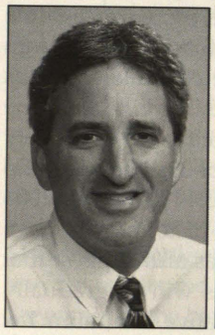
There are what are called "pitfalls" in this business. If it is the case that it should be job growth instead of output growth in the equation and I have output growth instead, then I've made a mistake. If it's the case that for this year output growth and job growth don't grow at the same rate, then I'm going to be overestimating Bush. Historically, output growth and job growth are highly correlated, so if you put both of them in the equation, you can't separate them out. They are what we call colinear. But it is a possible pitfall if we continue to have rapid output growth with no job growth so that the Democrats can continue to harp on job growth all the way through to October. That could be a substantial negative for the Republicans that I'm not taking into account in my equation. Most economists think that we will have both output growth and job growth between now and October. They don't think that we're going to continue to see these huge productivity increases in the future. If that happens, then the job issue is taken away from the Democrats. If it isn't, if for some reason the economists are wrong and we do have no job growth, I think that would probably make my equation less trustworthy than otherwise.

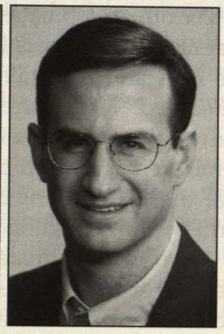
In every election cycle, some economic issues are hyped by the American media. Which economic issue is most under-represented?

I think that the media, for this election, is doing a reasonably good job. They're focusing on the productivity-employment growth question, and it's somewhat unclear how that's going to play out. The two [employment] surveys differ a lot. The household survey that makes up the unemployment rate data is much more optimistic about jobs than is the job payroll data. So there's confusion as to which survey is most accurate. Then they're focused on the fact that jobs aren't growing.

What role will the budget deficits play in the individual choices of the voter?

It's hard to tell. Basically you're asking how far people look ahead. At some point, the government is going to have to raise taxes, maybe ten years from now or so. I don't think people look ahead a huge amount on average. People are spending somewhat less than they would with anticipation that taxes are going to be raised in the future. But I don't think quantitatively that it's that big of a deal. Then there's the AMT, the Alternative Minimum Tax, which is not trivial. If they keep that, even if you make the tax cuts permanent, that AMT will hurt more and more over time so you do to some extent have a floor of about 28 percent tax rate on everybody. Quantitatively, the AMT is really a big deal. It will mitigate the effects of the permanent tax cut. But if you dump it, then you are really asking for it in terms of future deficits unless you cut spending dramatically. All of this is so complicated that I don't really think that people change their current behavior much in response to it.





BUSH'S NEW TAX CODE

A Victory for the Wealthy Masquerading as Reform

by William G. Gale & Peter R. Orszag

The Bush administration's public defense of its tax cuts rests on diverting attention from their primarily regressive, long-term effects and instead emphasizing their more modest benefits for the middle class and the economy in the short term. In think tank circles, though, the primary defense trotted out is that the tax cuts represent a piecemeal approach to fundamental tax reform. At academic gatherings, former top administration officials claim that the tax cuts move the nation toward a consumption tax. This defense is clever, since tax reform seems a more noble goal than merely cutting taxes – and a consumption tax has long had many academic supporters. Unfortunately, the quasi-intellectual claims about the tax cuts are as fundamentally flawed as the more public defenses of them.

Over the past three years, dividend and capital gains taxes have been slashed, an eventual repeal of the estate tax has been enacted and tax subsidies for saving and investment have been expanded. These tax cuts bear a superficial and partial resemblance to broader tax reform measures, but they fall short of a well-designed tax reform in several crucial ways.

The Bush tax cuts give Americans the worst of all worlds: all the regressivity associated with fundamental tax reform but none of the potential macroeconomic benefits. In addition, the tax cuts will create new sheltering opportunities and impose substantial burdens on future generations. To add insult to injury, by giving away the goodies before implementing any of the painful steps that real reform would necessarily entail, the tax cuts have probably also diminished the possibility of enacting a well-designed tax reform.

Taxing Consumption

The theoretical case for a consumption tax is easy to understand: The goal is to raise national saving. Higher national saving would boost long-term economic growth, because it would mean that we would own more machines, computers and other productivity-increasing equipment over time. Workers would enjoy higher earnings because, with the extra equipment, they would be able to produce more per hour.

Increasing national saving requires either raising saving in the private sector or reducing the government's budget deficit. Almost all analyses of consumption taxes assume a revenue-neutral shift, which would leave the budget deficit unaffected. A consumption tax would then raise national saving as long as it raised private saving. Most studies find that a move to a broad-based consumption tax would generate modest increases in private saving.

The principal downside to a consumption tax is that it is regressive. Lower-income families tend to consume a larger share of their income than higher-income families, so taxing consumption rather than income tends to shift the tax burden toward lower income-earners.

The "Five Easy Pieces"

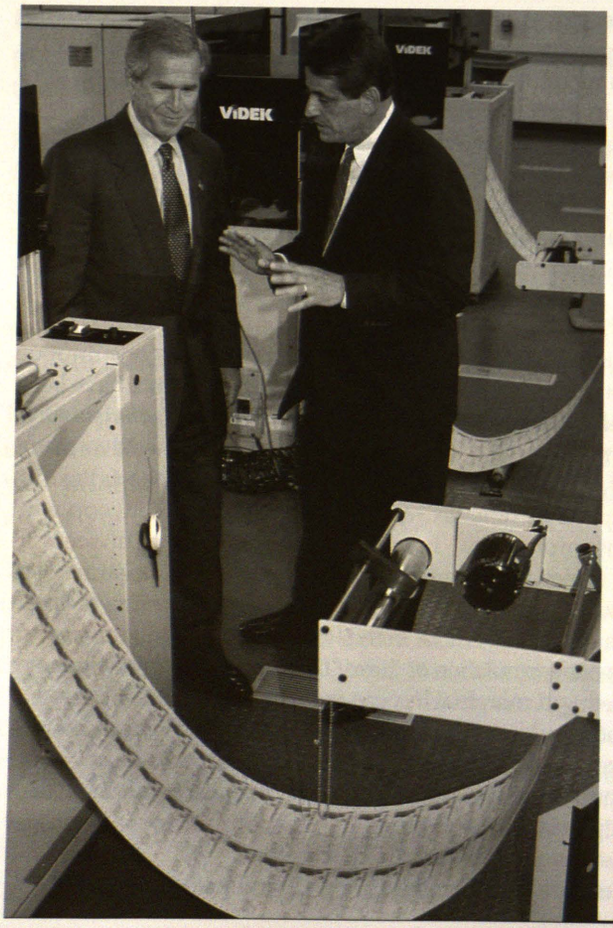
Conservative activists have long favored a consumption tax, and various sophisticated plans for such a tax have been trotted out by academics and others. But the activists have grown weary of trying to enact such comprehensive plans. After years of increasing frustration about the failure to "scrap the income tax" and replace it in one fell swoop with a consumption tax, many advocates on the right seem to have coalesced around a stealthier strategy. The strategy is embodied in the "five easy pieces" delineated by Ernest Christian, a former tax official in the Reagan administration. According to one formulation of these "five easy pieces," they include:

1. Reduced marginal income-tax rates, especially at the top;
2. Increased contribution limits for tax-free savings accounts;
3. Expensing of business investment, which allows immediate write-offs for capital spending rather than depreciation over time;
4. Removal of the estate tax; and
5. Reduction in dividends and capital gains taxes.

William G. Gale is the Arjay and Frances Fearing Miller Chair in Federal Economic Policy in the Economic Studies program at the Brookings Institution. Peter R. Orszag is the Joseph A. Pechman Senior Fellow at Brookings and Co-Director of the Tax Policy Center.

These five easy pieces are, presumably not by coincidence, reflected in the administration's recent tax cuts. The 2001 tax act reduced marginal tax rates and eventually repealed the estate tax. It also expanded contribution limits to IRAs and 401(k)s. The 2002 and 2003 tax acts included "bonus depreciation" provisions for expensing business investment, albeit only for part of capital outlays. The 2003 tax legislation reduced capital gains and dividends taxes. The administration is now promoting vastly expanded tax-free savings accounts.

The claim, according to Christian and others, is that this package of steps would move the nation very close to a consumption tax with a flat rate of taxation. At first, this claim seems plausible. The expansion in tax-free savings accounts, reduction in dividends and capital gains taxes, and repeal of the estate tax, for example, would reduce or eliminate any tax on saving, as would also occur under a consumption tax. Indeed, as Bruce Bartlett, a leading conservative commentator, noted in early 2003, "we can now see that Bush has had a strategy all along that conforms exactly to the five easy pieces ... By Bush's second term, it is possible that we will have made enough incremental progress toward a flat rate consumption tax that we may finally see fundamental tax reform fully enacted into law."



A check for reform? *President Bush, shown here at an IRS building in Philadelphia where tax refund checks were printed last year, has argued that his cuts are a first step towards overhauling the American tax code.*

First impressions, however, can be quite misleading. The tax cuts are not only costly, but they do not move us toward fundamental tax reform.

The Tax Cuts and the Deficit

The tax cuts do not come cheap. Even leaving out the bonus depreciation tax cut that the administration claims it does not want to extend past this year, official estimates suggest that the 2001 and 2003 tax cuts will reduce revenue by $1.2 trillion over the next 10 years (and another $500 billion over the past four years).

The official estimates, moreover, assume that all of the sunsets that were built into the 2001 and 2003 tax cuts take effect as scheduled. The sunsets mean that all the provisions of the tax cuts are ostensibly eliminated at the end of 2010 or before, so that the tax code reverts to its pre-2001 form by the beginning of 2011.

The official estimates also suggest that the cost of the tax cuts will be gradually reduced by the Alternative Minimum Tax (AMT), a complex tax system that rests alongside the regular income tax and has a different set of rules. The official estimates assume that, by 2009, one-quarter of the 2001 and 2003 income tax cuts will be erased by the AMT.

Assuming an AMT reform and that the tax cuts are extended past their sunsets, the total revenue loss from the tax cuts will amount to more than $3 trillion between 2005 and 2014. In 2014 alone, the cost would be $398 billion, or about 2.2 percent of GDP.

The revenue cost of the Bush tax cuts should provide a warning that they do not even move in the right direction relative to the underlying goal of a consumption tax. Remember that the key objective of such a tax is to raise national saving. It is completely implausible, however, that any increase in private saving in response to the tax breaks would offset their revenue loss. The administration's deficit-financed tax cuts thus *reduce* national saving rather than increase it, exactly the opposite of the fundamental goal of a consumption tax.

Because the tax cuts reduce national saving, most studies have found that they will harm long-term economic growth. Indeed, studies conducted by economists at the Joint Committee on Taxation, the Federal Reserve and elsewhere have all found that the 2001 and 2003 tax cuts will eventually reduce growth. Rather than potentially trading off some increase in growth against more inequality in after-tax income, as under academic versions of a consumption tax, the Bush tax cuts give us both lower growth and more inequality.

A Wage Tax Vs. A Consumption Tax

The deficit-financed nature of the tax cuts reveals the first flaw in the argument that the nation is evolving toward a well-designed tax reform. A second issue is that, even apart from the lack of revenue neutrality, the tax cuts are actu-

ally moving us toward a wage tax, not a consumption tax. The fundamental difference between the two involves the treatment of people who own assets at the time the new tax system is enacted.

A consumption tax provides a tax break only for new saving, not for existing capital. As a result, a consumption tax actually reduces the value of existing assets to their owners. To see why, think of someone with $100 in the bank at the time a consumption tax is adopted. Under an income tax, the owner of the bank account could withdraw the money and spend it without being taxed. Under a consumption tax, though, the $100 would be taxed when it is withdrawn and spent. Since the $100 bank account does not buy as much after the tax, its value is reduced under a consumption tax.

A key finding in academic analysis is that almost all of the economic benefit from moving to a consumption tax derives from the tax it places on existing assets. Yet rather than imposing a tax on owners of existing capital, the administration's tax cuts have showered unexpected gains on such people. The reduction in capital gains and dividend taxes to a maximum of 15 percent, for example, provided large benefits to owners of existing stocks. Stock prices reflect the tax treatment of dividends and capital gains. An unexpected reduction in taxes on dividends and capital gains therefore provides a windfall gain to investors who purchased stocks under the previous set of tax rates.

The capital gains and dividends provisions were even advertised as being designed to help people who currently owned stocks, rather than just helping people who would make new investments in the future. These provisions alone provided a tax cut in 2003 of more than $30,000, on average, for households exceeding $1 million in income. Almost none of that tax reduction reflected new saving in 2003.

Thus, the five easy pieces approach has not imposed any new burden on the owners of existing assets, as would occur under a consumption tax. Even supporters of the recent tax cuts would be hard-pressed to claim otherwise. *A tax on future consumption that exempts the owners of existing assets from paying additional tax is just a tax on future wages.* The reason is that under simplifying assumptions, future consumption can be financed either from existing assets or from future wages. If existing assets are exempted, the result is a tax on wages.

The potential macroeconomic benefits from a consumption tax do not extend to a wage tax. In effect, the whole point of a movement to a consumption tax is to place an additional tax on existing assets at the time of the transition, which is where almost all of the net gain comes from. Yet that is precisely the piece that the five easy pieces approach leaves out.

Deductions for Interest

The third flaw in the argument that the White House is moving toward tax reform involves deductions for borrowing costs. Any true consumption or wage tax would restrict the ability of taxpayers to deduct interest costs if they are not required to pay tax on interest income. Yet the administration has not endorsed or proposed any such restrictions. Without them, large tax sheltering opportunities could be created. Imagine, for example, someone who borrows $100 and deposits the money in a tax-free savings account. If the individual borrows the money in a tax-deductible form (for example, through a home equity loan), the net effect is to create a tax shelter. The investment returns on the account would be free from taxation.

Tax cuts that reduce national saving, reward owners of existing capital, and retain deductions for borrowing costs are not consistent with any sensible tax system – whether based on income, consumption, or wages. They will not lead us to a consumption tax, but rather to a system in which capital is subsidized and labor income bears the full weight of supporting government services.

The Regressivity of a Wage Tax

For most of the population, wages and salaries represent the bulk of income. Capital income, such as dividends, capital gains, and interest, looms much larger as one moves up the income distribution. For example, the middle 20 percent of the population derives 80 percent of its total income from wages and salaries; the top 1 percent, by contrast, obtains only 50 percent of its total income from wages and salaries. Similarly, the top 1 percent of the population is projected to earn 12 percent of total taxable wage and salary income in 2004, but 46 percent of total taxable capital income (Table 1).

These patterns mean that the shift toward exempting capital income from tax and placing the full burden on wages is hugely re-

"The Bush tax cuts give Americans the worst of all worlds: all the regressivity associated with fundamental tax reform but none of the potential macroeconomic benefits."

Table 1: Shares of aggregate income sources by quintile

	Wages & Salaries	Capital Income
Lowest Quintile	0.7	1.1
Second Quintile	5.9	3.9
Middle Quintile	12.7	5.8
Fourth Quintile	23.0	10.7
Next Ten Percent	18.0	9.3
Next Five Percent	12.8	7.1
Next Four Percent	15.0	15.1
Top One Percent	11.9	46.3
All	100.0	100.0

Table 2: Effect of extending 2001 and 2003 tax cuts, 2011

	% Change in After-Tax Income	% of Total Tax Change	Average Tax Change (2004$)
Lowest Quintile	0.1	0.0	-2
Second Quintile	2.0	3.0	-295
Middle Quintile	2.6	7.2	-712
Fourth Quintile	2.7	13.4	-1332
Next Ten Percent	3.9	15.6	-3088
Next Five Percent	3.9	10.7	-4248
Next Four Percent	5.5	18.5	-9169
Top One Percent	9.2	31.5	-62491
All	4.4	100.0	-1982

gressive. It moves the tax burden down the income distribution, toward families that derive most of their income from work.

Not surprisingly, the tax cuts widen after-tax income inequality. The top 1 percent of the income distribution, for example, will ultimately enjoy an increase in after-tax income of almost 9 percent because of the tax cuts; the middle 20 percent of the population will experience an increase of less than 3 percent (Table 2).

These results, furthermore, do not include the effects of any spending reductions enacted to pay for the tax cuts. In the short term, tax cuts can be financed by borrowing. Ultimately, however, a tax cut must be financed either with spending cuts or other revenue increases. Reflecting this simple accounting fact, Federal Reserve Chairman Alan Greenspan has emphasized that the Bush tax cuts should not be extended unless they are offset with spending reductions (which is the offset he prefers) or other revenue increases over the next decade.

Paying for the tax cuts over the next decade, though, would devastate the federal budget. For example, to offset the budgetary cost of the tax cuts in 2014 would imply one of the following options or changes of a similar magnitude:

- A 48 percent cut in Social Security benefits;
- Complete elimination of all income support programs plus a 22 percent cut in Social Security benefits;
- An 80 percent cut in all domestic discretionary spending; or
- A 34 percent increase in payroll taxes.

These figures show that tens of millions of people will be hurt by the spending cuts or other revenue increases that would ultimately be required by the movement toward a wage tax.

"Rather than potentially trading off some increase in growth against more inequality in after-tax income, the tax cuts give us both lower growth and more inequality."

Moving Toward Real Tax Reform

Tax reform always combines gain and pain. The tax cuts do the easy part of tax reform but ignore the difficult part. Just as it is not possible to cross a chasm in two jumps, the White House's incremental approach is problematic because it prematurely gave away the sweeteners that will be necessary to make an overall tax reform package work.

Consider the dividend tax cut. Even before the dividend tax reduction, most corporate income in the United States was not taxed twice. A substantial share was not taxed at the corporate level due to shelters and corporate tax subsidies, while at least half of all dividends were effectively untaxed at the individual level because they flowed into pension funds, 401(k) plans and non-profits. The problem is that the dividend tax cut undermines the political viability of true corporate tax reform. Any such reform would have to combine the carrot of addressing the "double taxation" of dividends with the stick of closing corporate loopholes and preferential tax provisions to ensure that corporate income is taxed once and only once — but at least once. The dividend tax cut, instead, just gave the carrot away.

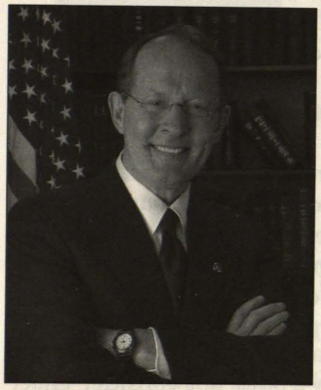
All may not be hopeless, however. Before they crack out the champagne, the five easy pieces crowd must address a major problem: The tax cuts enacted over the past few years are all officially temporary. The sunsets in the tax cuts effectively represent a gamble by the administration that it was better to enact larger annual tax cuts and then fight to make them permanent at a future date rather than adopting smaller tax cuts that very likely could have been made permanent in the first place.

In 2001, given the large and growing projected surpluses for the next decade, the decision to include sunsets in the legislation in order to obtain larger annual cuts looked like a fairly safe bet. Since 2001, though, the official budget projections for 2002 to 2011 have deteriorated by about $9 trillion.

The growing concern over the fiscal outlook has already led the administration to back away from extending the bonus depreciation provision from the 2002 and 2003 tax cuts. The other sunsets will provoke a renewed debate about the future of the tax code. In that debate, let no one be fooled: the five easy pieces are just five large, regressive tax cuts.

EDUCATION, ENERGY AND ELECTIONS

A Conversation with Senator Lamar Alexander



Lamar Alexander has represented Tennessee in the U.S. Senate since 2002. Before entering the Senate, he served as governor of Tennessee, president of the University of Tennessee and United States secretary of education under President George H. W. Bush. Senator Alexander, currently the chairman of the subcommittees on Energy, Children and Families, African Affairs and the Tennessee Valley Authority Caucus, spoke with *The Politic*.

As a former U.S. Secretary of Education, assess the No Child Left Behind Act. What role should the federal government play in public education?

The idea of No Child Left Behind is laudable and very simple in concept. It requires states to come up with state standards and state tests to measure every student's progress toward those standards. And it establishes a goal and spirit consistent with the American character – the idea that no child is left behind. We say that all men are created equal, that we'll pay any price or bear any burden to defend freedom and obviously we're going to say "no child left behind," rather than leave only 20 percent behind. The legislation also reminds us that a major part of the American character is decentralization and that we like local control. Most Americans want to make decisions about their own schools and not have somebody in Washington do it. As a result, we have a great deal of confusion right now and some unhappiness because of the difficulty of imposing even a very good idea from Washington on so many different kinds of communities. But the hope is that the confusion will be cleared up this year. That is, the federal government gives more flexibility to schools and to teachers. They will be able to come up with their own solutions, create their own tasks and modify their own standards so that every child has a chance to learn. We've either passed them without them learning or we've left them behind. Even in some very good schools, we have some children who aren't learning. I think that President Bush is right to call this to our attention and try to solve the problem.

Oil prices are reaching new highs and may play a factor in slowing the economic recovery. As chairman of the Senate Subcommittee on Energy, what do you see as the most viable way to lessen American reliance on foreign oil?

The first thing to do is to allow American producers of gas and oil to go find more oil and gas. It makes very little sense to encourage the use of natural gas, for example, to create electricity and then ban drilling for natural gas. It doesn't help the environment to force us to burn more coal that produces dirty air. It doesn't help the oceans to have oil tankers coming from the Middle East, any of which might get blown up and spill oil all over the water. We need to have a more sensible policy that allows us to explore and drill for more oil and gas in appropriate areas of the United States. The second thing that we should do is to focus heavily on new technologies that will limit our use of oil and gas. For example, the president has proposed a 20-year plan, which I am sponsoring, to create a hydrogen fuel cell car. The emissions from a fuel cell automobile are only water, so that would clean the air and reduce our dependence on foreign oil. There are other technologies that reduce our consumption of oil and gas. The hybrid cars, which combine electric motors with internal combustion engines, are catching on. And even diesel cars are coming back because they burn less oil. Also, there are other forms of energy that we should be using. I believe that we should begin to build more nuclear power plants. They now produce 20 percent of the nation's electricity. They do not pollute the air and we know how to use them safely. France produces about 75 percent of its electricity from nuclear power plants. Japan produces about 33 percent of its electricity from nuclear power plants. We invented the technology, but we haven't built a new nuclear power plant in the United States since the 1970s. There are other alternative forms of energy, but all of them are on the margin. For example, people talk about windmills, but it would take an awful lot of windmills to compensate for one nuclear power plant. And you'd still have to have a power plant because the wind doesn't blow all of the time.

You currently have co-sponsored legislation with Senator Tom Carper regarding the ability of states to tax internet use. What is the future of Internet taxation? What is the government's role in the development of the Internet?

"Senator Kerry should talk about how he wants to solve the problem in Iraq, since he voted for the war. He needs to be talking about how he would create new jobs [and] about his plan for raising taxes."

The question of whether Internet access should be taxed is ultimately a question for state and local governments, just as state and local governments decide whether to tax other transactions. That's what governors and mayors are for. They decide whether it's wise to impose a sales tax on the purchase of Internet access, the purchase of a movie, the purchase of water or the purchase of food. All of those are subject to taxation and state and local officials make their decisions about that. My position on the legislation here is that Congress should leave those decisions to governors and mayors, that it is wrong for politicians in Washington to impose some new cost on a state or local government without paying the bill. It sounds very good when a member of Congress has an expensive new idea, passes it into law, takes the credit for it and then sends the bill to the governor or the mayor. But it actually causes the governor or the mayor a big problem, because they either have to cut services, fire good teachers or raise the local property tax.

Do you see Tennessee as a potential swing state in the 2004 election?

Yes, I do. I think Tennessee leans toward President Bush. I think his foreign policy, his emphasis on free markets and his attitude on social issues is more consistent with the majority of Tennesseans. But Tennessee is a very independent state. We have a Democratic governor, half of our congressmen are Democrats and I think it will be a hard-fought race.

Senator John Kerry recently described Republican critics as "the most crooked ... lying group I've ever seen" and has repeatedly questioned the administration's defense and economic policies. Are the Senate Republicans defending the White House or is there some validity to the presidential challenger's claims?

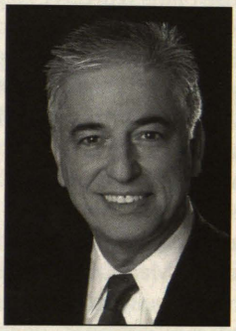
I think that Senator Kerry got caught talking under his breath without knowing that he was being recorded, and he probably wishes he had been more careful. That's not the kind of conduct or comment that we would expect from a presidential candidate or a president. Senator Kerry should talk about how he wants to solve the problem in Iraq, since he voted for the war. He needs to be talking about how he would create new jobs. The president helped do this by lowering taxes. Senator Kerry needs to talk about his plan for raising taxes. It's better for the senator to talk about the issues, and I hope he and the president do that rather than engage in personal comments.

Bush's controversial health care agenda has received lukewarm support from conservatives. What are the implications of his vision, and is this the best direction for our country?

I think it was the best direction for our country. We would not consider enacting a Medicare program today for the first time without including prescription drugs. Prescription drugs, appropriately used, help us avoid disease, reduce health care costs over the long haul and make our lives better. We've had so many advances that it is not right that only rich people or middle-income people can afford prescription drugs. The President was very courageous to challenge Congress, and Congress acted to spend up to $400 billion over the next ten years, probably significantly more, making sure that low-income Americans have access to prescription drugs. I think that these lower-income Americans who benefit greatly from this bill will be grateful for it, and I think that most Americans will see that it is an important part of the President's compassionate attitude toward the country's future.

Is there anything else that you would like to share with the students of Yale?

The only thing that I want to suggest to the students of Yale is that I'd like to encourage them to study United States history at a time when our nation is challenged. We need to understand better our own country. We're the only country that is united by belief in a few principles rather than by race or nationality. Too often, United States history is not taught and not understood. It's very difficult to preserve our country. As wonderful a campus as Yale is, I would hope many students would take the time to learn the fantastic stories, the controversies and the struggles that go with the history of the United States.



THE HEALTH OF AMERICA

A Look at the Health Care Policy of the Bush Administration

by Donald J. Palmisano

Providing Medicare beneficiaries with greater access to prescription drugs has long been an election-year promise – and this past year lawmakers have taken a significant step toward that pledge. Through the tenacity and will of President Bush and committed members of Congress, America's seniors and disabled citizens have access to a prescription drug benefit of Medicare for the first time in the program's 38-year history. When Medicare was enacted in 1965, prescription drugs played a much smaller role in providing health care. Now we can both treat and prevent illnesses through the judicious use of medications. Today, two-thirds of doctor office visits result in a prescription being written, and over three billion prescriptions are filled each year.

Prior to the bill's passage, most Medicare beneficiaries had to rely on a confusing array of drug assistance programs and secondary insurance to cover prescription drugs or pay for them out of their own pocket. Unfortunately, the means to afford these medications was out of reach for many of our nation's seniors and disabled persons. Hard choices — cutting pills in half to make them last longer, choosing prescriptions over heating homes or simply going without needed medications — were being made every day by seniors across the country.

Medicare currently provides approximately 40 million Americans with health care coverage, and that number will expand greatly as the baby-boom generation reaches retirement age. Updating a government program as enormous as Medicare — and in such a polarized political environment — was a major undertaking and did not happen overnight. Previous efforts to update Medicare and give seniors a prescription drug benefit stalled many times, leaving seniors empty-handed. This time, however, enough members of Congress recognized that the need to pass a Medicare prescription drug benefit had finally reached critical mass; the status quo was simply no longer acceptable. Getting the Medicare bill to the president's desk for his signature required much compromise. After months of negotiation, the bill passed the House of Representatives by a 220-215 split after an all-night vote and the Senate by a 54-44 vote. The President made passing prescription drug legislation a priority of his administration. Seniors have finally received the prescription drug benefit that they have so desperately needed.

While even its strongest supporters admit that the Medicare drug bill is no panacea, the changes to the Medicare law were necessary to bring the program into the 21st century. The American Medical Association (AMA), the American Association of Retired Persons (AARP) and the many other organizations that supported the legislation understand the importance of this first step for America's seniors, as did President Bush and the many members of Congress who fought hard for the bill's passage. And while there are those who criticize the drug benefit for not providing enough drug coverage — and others who say it costs too much — without this bill, patients who desperately need Medicare to provide a drug benefit would still be without access to prescription drugs.

The prescription drug benefit is complex and will require educational outreach to Medicare patients to help them best to take advantage of the new benefit. Here are some of the highlights of the benefit:

Beginning in June, 2004, Medicare patients have the option to participate in the new drug plan through its first-step prescription drug card program. The drug cards provide immediate relief to seniors and will phase out in January 2006 when the Medicare drug benefit begins. The cards will cost no more than $30 and will provide discounts of 10 to 25 percent on prescription drugs. There was an overwhelming initial response rate to the government's call for drug card providers, with over 100 companies and organizations offering to provide Medicare-approved prescription drug cards.

Approximately one-third of Medicare beneficiaries are expected to benefit from the special help being given to low-

Donald J. Palmisano, M.D., J.D., is currently serving as the 158th President of the American Medical Association. Prior to his term as president, he worked as a general and vascular surgeon in private practice in New Orleans.

A helping hand, or a hand-out? *President Bush's Medicare reform plan is intended to give seniors more benefits and choice in their health care, but it has been criticized for its steep price tag.*

income patients when the prescription drug benefit goes into effect in 2006. Costs for prescription drugs will be nearly eliminated for these low-income beneficiaries. For some low-income patients, relief starts this year with the prescription drug card. In fact, married couples with income less than $16,000 annually and singles with income less than $12,000 annually are eligible for a $600 subsidy towards their drug costs when they use their discount cards in 2004 and will not have to pay the enrollment fee for the drug card. In 2005, these low-income beneficiaries will receive an additional $600 worth of prescription drug assistance. When the actual drug benefit goes into effect in 2006, low-income Medicare beneficiaries will be eligible for continuous drug benefits with no premium and no deductible to pay and prescription drug co-payments will be between one and five dollars.

The drug benefit is voluntary and open to anyone in Medicare. When the drug benefit begins in 2006, all patients who enroll in prescription drug plans will have 75 percent of their first $2,250 in drug costs covered after a $250 deductible, and 95 percent of their drug costs will be covered after they reach $3,600 in costs in a year. This leaves a $1,350 gap, referred to euphemistically as the "doughnut hole" in coverage. Ideally Medicare would close this gap, but this bill is a strong first step to providing drug coverage for all Medicare beneficiaries, particularly to those most in need.

For some Medicare patients, particularly those with comfortable incomes and low drug costs, their existing drug coverage may better suit their needs than the new Medicare benefit. But even for those who choose to continue with their current Medicare benefits and not take advantage of the voluntary drug plan, there are additional benefits built into the bill that benefit all Medicare patients.

Until now, choice of health plans within Medicare was limited to either traditional Medicare or a health maintenance organization (HMO) option. The legislation now gives patients more choices for their health care by adding a preferred provider organization (PPO) option to the program. This new private insurance option, called Medicare Advantage, will allow Medicare patients to have a comprehensive plan that covers physician and hospital services and prescription drugs, while also limiting out-of-pocket costs.

Prior to the bill's passage, there were real concerns that access to care for Medicare patients was at risk due to cuts in government scheduled payments to physicians and other health professionals. The formula used to set Medicare physician payment rates is based on the ups and downs of the economy — not the health care needs of America's seniors. For many physicians, treating Medicare patients was beginning to resemble charity care. Many physicians had to make hard choices about taking on new Medicare patients. Some chose to limit the number of new Medicare patients they accepted in order to keep their practices open.

A 2003 American Academy of Family Physicians survey showed that if more Medicare cuts were enacted, nearly 24 percent of family physicians would stop taking new Medicare patients. Many organizations, including the AMA, argued that a prescription drug benefit would only be valuable if patients had a physician to write the prescription. In response to these

access concerns, the Medicare law halted payment cuts to physicians for the next two years and replaced the cuts with modest payment increases in 2004 and 2005, alleviating the short-term fears of many about access to care.

The legislation includes several provisions important to the physician community beyond halting the payment cuts, including voluntary electronic prescribing, regulatory relief, retainment of the current Medicare coding system and the reduction of Medicare payment disparities between rural and urban areas.

The Medicare bill also includes a provision that will help all Americans, whether or not they are eligible for Medicare, to save pre-tax dollars for their health care needs. This program, called Health Savings Accounts (HSAs) empowers patients to have greater control over their health care decision-making. Like an Individual Retirement Account (IRA), HSAs are owned by an individual through a custodian (bank or insurance company) and are portable.

While Medicare reform is the largest health proposal to have passed Congress in 2003 bearing President Bush's mark, several other initiatives important to the White House were addressed in Congress and through the federal agencies this past year.

One issue important to both President Bush and the AMA is medical liability reform. In fact, this has been the AMA's highest legislative priority for the last two years. Our nation is currently facing a medical liability crisis where patient access to care is threatened by our broken litigation system. The AMA has identified 19 states in a medical liability crisis where escalating jury awards in medical liability cases have forced insurers to raise liability insurance rates for physicians to back-breaking levels. Since many physicians can no longer afford liability insurance, some have stopped performing high-risk procedures, retired early or moved to states with effective liability reforms.

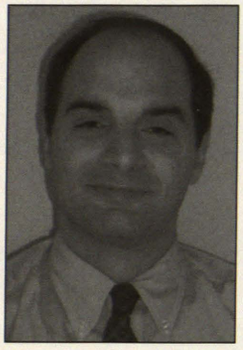
President Bush stressed his commitment to medical liability reform in his 2004 State of the Union address. In 2003, the House of Representatives passed comprehensive medical liability reform. The legislation continues to provide patients access to the courtroom without sacrificing access to medical care. A key component of the reform is a quarter-million dollar cap on the non-economic damages portion of jury awards, with no restrictions on economic damages. This legislation is based on a proven performer: reforms enacted in California over 25 years ago known as MICRA. By capping non-economic damage at a quarter-million dollars, the MICRA legislation has preserved access to care for Californians by stabilizing liability insurance premiums for physicians.

Unfortunately, this legislation is stalled in the Senate, which has now twice attempted to pass liability reform similar to the House legislation. Both Senate attempts to pass medical liability reform legislation were thwarted by a minority of senators. However, Senate leadership and the administration of the AMA remain committed to enacting liability reform that preserves patient access to care and keeps doctors in the business of caring for their patients. Government reports and independent analyses have detailed the high costs of our liability system on the nation's health care system. With President Bush's strong support, the AMA will continue to advocate for medical liability reform for all of the nation's physicians and patients.

Covering the uninsured is another key health care issue facing the nation. The administration has taken pains to mitigate this concern by promoting innovation in tax policy. President Bush recently reaffirmed his support for tax credits with his proposal to establish refundable tax credits to help low-income workers buy health insurance coverage. Financially enabling uninsured individuals and families to purchase their own health insurance and empowering them to choose and control their own coverage is essential to achieving reform. The AMA thus strongly supports the Health Savings Account and Health Coverage Tax Credit innovations signed into law by President Bush.

Updating Medicare, reforming our medical liability system and covering the uninsured are three key issues that both President Bush and the AMA strongly believe are integral to improved health care in our nation. Reform efforts continue in the White House, Congress and in the private sector. Of course, there is still more work to be done on Medicare. This chiefly involves repairing the long-term financing of the program. Nonetheless, patients from all over the world come to the United States seeking top-notch medical treatment. We must continue to work to be sure that our medical system matches the excellence of our medical care. P

"Prior to the bill's passage, most Medicare beneficiaries had to rely on a confusing array of drug assistance programs and secondary insurance to cover prescription drugs or pay for them out of their own pocket."



HOLDING THE FISCAL LINE

How to Survive in the New Age of Federal Deficits

by John Berthoud

Only a few years ago, the Congressional Budget Office (CBO) and the White House's Office of Management and Budget (OMB) were projecting record budget surpluses. But in presenting the president's new budget, the OMB is forecasting a $521 billion deficit for the fiscal year beginning October 1. Using optimistic assumptions, the CBO is projecting that federal deficits will total $1.9 trillion over the coming decade. What do the new deficits mean for the Bush tax cuts and what, if anything, should we do about them?

The Harm of the Bush Deficits

When measured in dollar terms, the Bush deficits are at record levels. When measured as a share of the economy, however, the numbers don't appear to be detrimental. At 4.2 percent of GDP, the 2004 deficit is only about half as large as the deficits of the 1980s. Moreover, economic growth set records during the Reagan years that we still haven't matched, suggesting that large government deficits might in fact spur the private consumption and investment that fuel a successful economy.

The Bush deficits may, however, cause bad decisions to be made on taxation issues. Because of deficit concerns, there is talk of reversing the Bush tax cuts of the past several years, undoing the economic gains that the tax cuts have wrought. Furthermore, the deficits will almost certainly limit the action needed to restrain the Alternative Minimum Tax (AMT).

The AMT was created to prevent the extremely wealthy from using large deductions to avoid paying taxes. Originally aimed at less than 200 taxpayers when it was initiated in 1969, this system now threatens to become a burden on millions of Americans. By 2010, one-third of all taxpayers in America will have to fill out a second form and comply with a second set of tax rules. Taxpayer advocate Nina Olson calculates that the AMT adds twelve hours of work to the job of preparing a single tax return. Most of those hit by the AMT will, in fact, make far less than $100,000 per year. According to a U.S. Treasury Department study by economist Robert Rebelein, over half of all families with three or more children will be subject to the AMT. As a result of inflexible brackets and inflation, the AMT is becoming an affliction for the hard-working, middle-class families that it was once meant to protect.

It is plausible, then, that new deficits will mean higher taxes on Americans than would have otherwise been the case. But there's another reason to rein in troublesome deficits: they aggravate the long-term fiscal imbalance that the nation faces. Even if the annual federal deficits don't have much of a direct effect on interest rates or economic growth, the looming imbalance between spending and revenues for our major entitlement programs is a cause for concern.

According to calculations by economists Jagadeesh Gokhale of the American Enterprise Institute and Kent Smetters of the Wharton School of the University of Pennsylvania, the federal government currently has approximately $45 trillion in unfunded liabilities, due largely to Medicare and Social Security. That's over four times the size of the entire U.S. economy last year. The spending binge of the Bush administration has put this country on a path whereby it will enter the age of the Baby Boom retirement, in about ten years, running unprecedented budget shortfalls. Last year's Medicare prescription drug bill has added trillions to the government's liabilities. Bush and his allies in Congress have managed to take a bad problem and make it worse.

What To Do About the Bush Deficits?

How should the federal deficits be diminished? Reversing the Bush tax cuts is not the answer. Lower taxes

Dr. John Berthoud is president of the National Taxpayers Union (NTU) and the National Taxpayers Union Foundation (NTUF). Berthoud holds a Ph.D. in political science from Yale University.

translate into higher economic growth. In promoting tax relief, President John F. Kennedy recognized this relationship, noting that "our present tax system exerts too heavy a drag on growth, that it siphons out of the private economy too large a share of personal and business purchasing power, that it reduces the financial incentives for personal effort, investment and risk-taking."

The Bush tax cuts have figured prominently in America's return to economic growth in late 2003. Over 100 economists — including Nobel laureate Milton Friedman — recently signed a letter circulated by the National Taxpayers Union. The economists stated that "[m]any in Congress are rightly concerned about federal budget deficits. But we urge Congress to recognize that the deficits have been caused by the economic slowdown and a run-up in federal spending. The deficits did not come about because individuals or corporations are under-taxed. We believe that Congress should address its spending excesses and also enact policies that further economic growth. But the federal government should not hike taxes by reversing the recent tax cuts."

The Democratic candidates for President, to varying degrees, called for increased taxes. But while the candidates are claiming fiscal prudence as the driving factor behind raising taxes, increased federal spending is their true aim. An analysis by the National Taxpayers Union Foundation of the eight candidates in the race at the time of the Iowa caucuses found that each was proposing new spending in excess of $169 billion per year (see table). The priciest agenda, Al Sharpton's plan, would have hiked spending by over $1.3 trillion annually. While still in the running, Howard Dean claimed himself to be a "fiscal conservative" and vowed to repeal every dime of the Bush tax cuts for the sake of the deficit. His spending agenda, however, was so large that if enacted in its entirety, it would swamp the effects of erasing the tax cut and increase the deficit by $88 billion.

The deficits have been brought about by spending excesses. Reversing this bloated spending is the only responsible way to restore fiscal balance. Between 2000 and 2003, discretionary domestic outlays jumped by almost 33 percent, from $298.6 billion to $392.8 billion. While some of this new spending is related to Homeland Security, billions of dollars have been poured into sinkholes like farm subsidies, pork barrel transportation projects and shameless corporate welfare.

Unfortunately, the Republican urge to spend seems to be building momentum. Since the CBO's last deficit projections in August 2003, a supposedly "conservative" Congress and President have enacted new spending totaling $681 billion over the coming decade. Members of Congress, always looking for pork-projects in their districts, have no shortage of ideas for even more spending. In the House of Representatives, nearly 24 bills were introduced to increase outlays for every bill to cut spending. In the Senate, the ratio was a stunning 36 to 1.

Needed: A New Dedication to Spending Restraint

President Bush and Congressional leaders, wary of eroding conservative support, have pledged to limit spending this coming year. As he released his budget projecting a $521 billion deficit, Bush observed that, "[o]ne clear signal we need to send to the American people and the markets is [that] we're going to be wise when it comes to the expenditure of the people's money." Bush has given speeches for three years about the need for spending restraint, but he has done little else. Only by investing some political capital — perhaps by vetoing one or more of the upcoming spending bills — will he begin to reverse the dismal spending and deficit trends that he has established.Tax cuts have rejuvenated an economy stuck in neutral, but they need to be accompanied by reduced federal expenditures. In his campaign for reelection, Bush the younger might want to adapt a line from his father: Read my lips, no new *spending*.

"Tax cuts have rejuvenated an economy stuck in neutral, but they need to be accompanied by reduced federal expenditures."

Table 1: New Spending Proposed by Democratic Presidential Candidates

Candidate	Total Proposed Spending Increase (Annual, in Billions)
Sharpton	$1327.01
Kucinich	$1060.35
Gephardt	$ 368.76
Kerry	$ 265.11
Dean	$ 222.90
Clark	$ 220.66
Edwards	$ 199.48
Lieberman	$ 169.55

Source: National Taxpayers Union Foundation (NTUF) calculations using NTUF's BillTally software.

WHAT EUROPE THINKS

A New Perspective on the 2004 Election

by Denis Chaïbi

If there is one thing that any European should learn, it is not to interfere with the U.S. presidential elections, or any election that takes place on U.S. soil. Perhaps I should take note of this observation and stop here, but that would make this article rather short. Yet how many times is a European offered the possibility to write about American presidential candidates in one of their alma mater's publications? Since I can afford the luxury, which seems rare at Yale these days, of not rooting for a particular candidate, I can examine their positions on subjects of interest to Europeans, or at least to me. These are numerous, but in order to fit these pages, I will only look at four transnational issues where U.S. policies have influence far beyond American borders: environment, currency, trade and foreign policy.

Kyoto, or Not Kyoto, That Is The Question

Regarding the environment, the European Union (E.U.) is one of the driving forces behind the conclusion of multilateral conventions. The European Union is a contracting party to over 40 conventions and has multiple contacts with the U.S. administration on issues relating to the environment. These efforts led to positive results for the Montreal Protocol for the Protection of the Ozone Layer. Yet under the Bush administration, it seems that the U.S. policy on global environment is based on an alleged knowledge of what is most effective to balance environmental measures, pollution control and economic growth. This approach hardly exudes any faith in the judgement of other administrations that have excellent records as far as environmental issues are concerned.

Concerning the environment and Senator Kerry, the first element that should be underlined is that his French cousin Brice Lalonde was one of the most popular environment ministers in Europe. So it must be in his genes, since Senator Kerry is generally in favor of environmental measures: He voted yes for the reduction of funds for road-building in national forests, yes for the continued protection of California deserts and yes for providing environmental risk assessments. Overall, he has shown some support for the precautionary principle advocated by the European Union and could even be persuaded to consider the bio-diversity and bio-safety conventions. It is difficult, however, to imagine that Congress would allow the ratification of the Kyoto protocol, which represents the most significant dividing line between the two candidates.

How Do You Like Your Dollar? Strong, Weak, With Chinese Sugar or Japanese Milk?

At the moment, it is commonly noted in Europe that the U.S. dollar is weak, that the euro is strong and that this imbalance is negative for E.U. exporters. This very ethnocentric approach needs to be nuanced in order to understand the difference between the presidential candidates on that issue.

The first element to underline is that, although Europe is not keen to have its currency rise much further, the strength of the euro is often exaggerated — in trade-weighted terms, it is at about the same level as when it was launched.

The real problem is that the United States has twin deficits — trade and budget — that are financed by Japan and China in a rather peculiar way. Indeed, Chinese and Japanese economies — because of their staggering accumulation of U.S. dollars — should record inflation and increases in their currencies' values compared to the dollar.

Japan, however, has just turned the corner after a long deflation phase and its central bank has intervened massively on the market to prevent any rise of the yen relative to the dollar. China's currency is not directly convertible and is pegged to the dollar at a level that does not reflect the significant trade surplus it has with the United States. Because of these two anomalies, Europeans com-

Denis Chaïbi is the 03-04 E.U. fellow at Yale University. He specializes in international law and E.U. institutions and foreign policy, particularly trade policy. A former diplomat for both Belgium and the European Union, he spent the past three and a half years in Cyprus.

plain that the burden of adjustment has fallen disproportionately on the euro and not on the Japanese yen or the Chinese yuan, as it should. The European Central Bank (ECB) could always cut interest rates further, of course, or intervene in currency markets, as Japan has done so assiduously. But the ECB is reluctant to cut rates because it still worries excessively about inflation. And without help from the Americans, intervention is unlikely to do more than slow the euro's rise.

How is this relevant to the U.S. presidential election? Since the origin of this volatility in exchange rates lies partly in the U.S. budget deficit, it might be useful to take a closer look at the situation. In this regard, President Bush's massive tax cuts could be labeled as dangerous not only for his own country, but also for Europe. Yet history has shown that the United States is able to manage a massive deficit and get back to healthier budgets rather quickly. As mentioned recently by Federal Reserve Chairman Alan Greenspan, the effects of tax cuts should nevertheless be maximized by the reinstitution of the "pay-as-you-go" rules of the 1990s, which require that tax cuts be matched by spending cuts. In an election year, this recommendation may well fall on deaf ears.

Indeed, while Team Bush touts tax cuts, it never mentions the other hallmark of this administration's fiscal policy: soaring federal spending. Obviously, this is in part due to the operations in Iraq, which was a war of choice rather than a war of necessity. In addition, there has been a large increase in handouts to America's elderly through pensions and Medicare, as well as significant subsidies to farmers. The future is not rosy for the U.S. budget, as the extension of the tax cuts, the reform of the Alternative Minimum Tax (AMT), the continued rise in defense spending and the expansion of Medicare and pension expenditures facing the aging baby-boomers are likely to prove unsustainable.

Would this drastically change with Senator Kerry as p0resident? Once you have borrowed for breakfast and lunch, it is hard to find money to pay for dinner, as Europeans faced with the same situation know well. Kerry pledges to substantially reduce the deficit, which he will have to do. It should be possible to roll back some or all of the tax cuts, but cutting spending — especially for benefits and health care — will prove much harder.

In the end, any candidate will have to leave this fiscal "neverland." Perhaps Senator Kerry would be able to do it slightly quicker than President Bush, but that is not a certainty. In any event, the room for maneuvering will be limited, unless rapid economic growth and job creation kicks in, widening the tax base and softening the adjustment period.

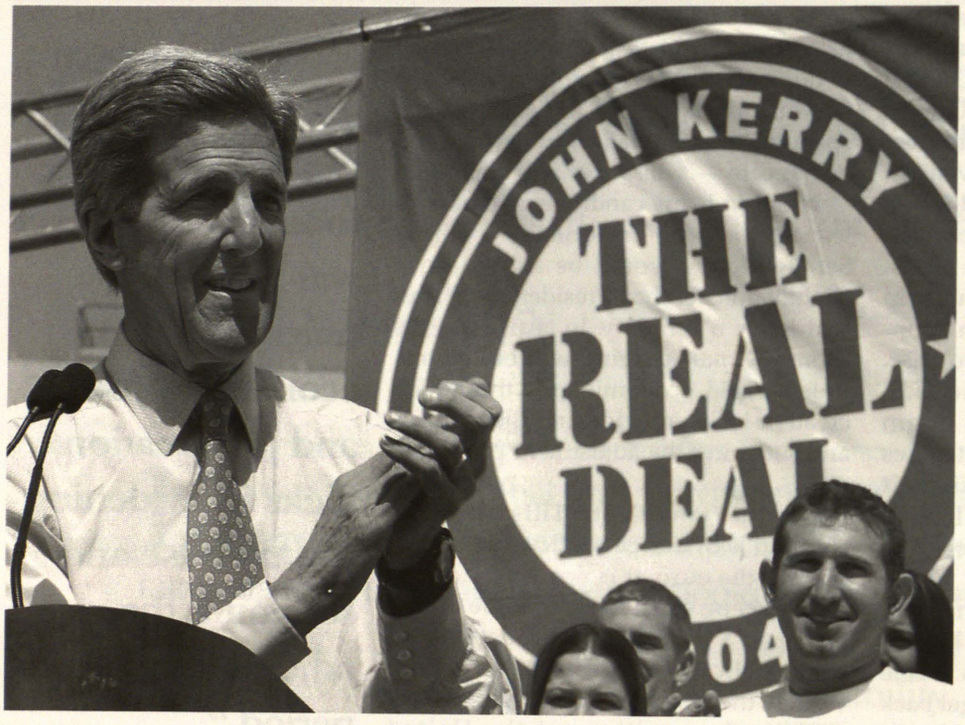
Trade and Transatlantic Tiffs

If the U.S. budget deficit has an impact on the euro, it is not as obvious as it may seem, since the U.S. trade deficit also has a significant impact on the trade policy of the European Union. Within the World Trade Organization (WTO), the positions of the United States and the European Union are allegedly the same: further liberalization of agriculture tariffs and an interest in fostering negotiations over services, intellectual property, investment, competition, trade facilitation and transparency in government procurement.

In the field of agriculture, the United States' 2002 farm bill has not been warmly welcomed in Europe. According to the official numbers, the farm bill will increase government spending on agriculture by 80 percent — an addi-

"In any event, the room for maneuver will be limited, unless rapid economic growth and job creation kicks in, widening the tax base and softening the adjustment period."

Exchange program: *The impact of U.S. policies on the value of the euro is causing some E.U. members to closely watch the 2004 presidential campaign.*



For Europeans, too? *Across the Atlantic, political observers are closely watching how the 2004 election reshapes American trade policy.*

"Indeed, while Team Bush touts tax cuts, it never mentions the other hallmark of this administration's fiscal policy: soaring federal spending."

tional $82 billion over ten years. In reality, these figures are likely to be underestimates. Indeed, the bill extends subsidies to a whole range of products, from honey to chickpeas. There are even new payments for America's biggest crops, soybeans, corn and wheat, which are related to prices and production and hence are highly trade-distorting — exactly the opposite of what is preached within the WTO. Although the Bush administration was not responsible for the farm bill, its opinion was ignored by Congress. The political clout of farm states in an election year is likely to prevent any candidate from effecting change over subsidies in the near future.

In terms of trade disputes, the process of resolving them within the dispute settlement body of the WTO has proven more resilient than what could have been expected some years ago. The dispute on steel saw President Bush lift U.S. protection following threats of E.U. retaliation. That may have had something to do with the fact that Europe planned to slap the heaviest duties on products made in states that Bush badly needs to win in November's presidential election.

The most important current dispute is as serious as any in the WTO's history. Although the E.U. notified Washington last September of its plans to impose additional tariffs by March 1, Congress has been very slow in changing a policy that offers tax breaks — and thus illegal incentives — for American exporters.

Other disputes of a technical nature, including those over U.S. anti-dumping rules and E.U. labeling for beef with hormones (or is it hormones with beef?) are being solved through the appropriate mechanisms, which seem to be working in managing trade disputes that affect daily exchanges of $1 billion.

Despite trade disputes, the failure of the Cancun round of WTO talks and the farm bill, President Bush has spoken in favor of free trade policies, as supported by the European Union. During the 2000 campaign, he famously spoke of tearing down "terriers and bariffs," but in 2001 he managed to obtain Trade Promotion Authority (TPA), a negotiating mandate which the administration needs to strike trade deals. This "fast track" authority had lapsed by 1994, which indicates the ambivalent attitude of Congress regarding trade agreements.

From this perspective, it is clear that Senator Kerry's comments indicate a less favorable approach to free trade. Protectionist sentiment seems to be hip in Washington these days, and history buffs understand how Benedict Arnold references illustrate concern over the outsourcing of white-collar jobs. Since Senator Kerry has voted for every major free trade treaty since he backed the North American Free Trade Agreement in 1993, his personal record would actually tend to suggest that he is a natural-born free trader. Be that as it may, he has clearly adopted some of the tunes sung by Senator John Edwards and former Governor Howard Dean in order to gather more votes.

At the end of the day, the crucial element of U.S. trade policy as seen from Europe is the relationship between the president and Congress. The recent declarations by Senator Kerry do not seem to encourage a progressive vision of trade in the 21st century, but trade policy often has a life of its own, determined by the requirements of economic growth.

U.S. and us, or U.S. and them

At the heart of the transatlantic debate, however, lies U.S. foreign policy. Before examining the possible differences between the two candidates, some elements should be underlined.

First, as former Secretary of State Henry Kissinger put it: "At the dawn of the new millennium, the United States is enjoying a pre-eminence unrivalled by even the greatest empires of the past." Although a uniting Europe could be perceived by some as a potential challenge to the United States for primacy, the reality is that Europe does not have the same military power, nor does it want to forcefully impose its vision. The European Union is based on power sharing rather than power struggling. Its understanding of international relations has been based on processes, on extensive communication with stake holders, on soft measures like development aid and trade measures. It has some powers in defense and security policies, but only if it respects the cornerstone of its foreign policy, which is multilateralism.

Second, because of the atrocious terrorist actions of September 11, the United States is willing and bound to use its power in a more assertive way than it has done in the past. The U.S. government has set the agenda on the fight against terrorism, which might bring some results in Iran and North Korea.

Third, the United States has strong beliefs that values such as individual freedom, justice and free-market economics should be universal. The fall of Communism is sometimes perceived as encouragement for the U.S. president to proselytize states that reject these values.

Finally, because of its military domination, the United States has a conception of sovereignty that is different from other nations. Although most states — but not all — understand that grave violations of basic international treaties might result in significant consequences for their own sovereignty, the United States does not feel this threat. While European nations have moved beyond the traditional notion of sovereignty through economic integration — and have been imitated on this front in South America, Southeast Asia and in certain African countries — the United States still considers the concept of state sovereignty as the ultimate value of the international legal order.

Taking into account these four elements, it seems that both candidates are bound to perpetuate the policy that relies on the American ascendancy over other nations. Yet the way this is implemented does matter. It can be done in an inclusive manner, through which most of the democracies recognize the U.S. interest and support it. Or it can be done in a more hawkish way, where cynical remarks replace conversations and the megaphone is used instead of the telephone.

President Bush has clearly adopted a more abrasive approach, while Senator Kerry makes it clear that he will support the multilateral, cooperative tradition of democratic internationalism forged in the course of two world wars and the Cold War. His voting record and his roots tend to support this assertion.

But as demonstrated by the preparation for Afghanistan and the change of tack about Iraq, President Bush is ready to move with the international community. If Senator Kerry's words on multilateralism receive a warm welcome in the polls, whoever the next president is will likely look at the world from a different perspective than the one that insisted on the need to search for weapons of mass destruction in a desert full of oil.

The possibility of such development is becoming increasingly more likely in view of the situation in Iraq and the domestic pressure brought by the investigation on 9/11. On the other hand, Europeans, who were already cooperating significantly with U.S. authorities, will now focus even more on terrorism after having been struck by the March 11 attacks in Madrid. Even so, in the months leading up to the presidential elections, we may expect that Europeans will get closer to Mars while the U.S. will seek to get more of Venus.

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AMERICA'S POST-ELECTION PRIORITY

Toward a Bipartisan Trade Policy

by John O'Leary

With U.S. international trade policy an issue in domestic politics once again (remember that "giant sucking sound" from the 1992 campaign?), now is not too soon to start looking beyond the partisan debates of the day and the November 2 presidential election that will settle them.

The next administration, whether led by President Kerry or President Bush, will have no long-term foreign policy priority with more lasting economic importance to our country's national interest, or more day-to-day impact on how ordinary Americans live their lives or build their futures, than the shaping of a bipartisan trade policy for the United States.

Over the course of the next few months, the focus of the debate about trade policy will be shaped by candidates for federal office in the rough-and-tumble of an election year. They will argue about, and struggle for partisan advantage on, such issues of the day as outsourcing of American jobs, tax policy, corporate investments abroad and what we need to do to assure that free trade will be fair trade.

What presidential and congressional candidates probably will not be saying much about these next few months will be the growing backlog of free trade agreements. These agreements have recently been negotiated, or are in the process of being negotiated, but our Congress has not yet considered them on their merits. Those agreements now involve eight other countries: the six-way Central American Free Trade Agreement (CAFTA) deal with Costa Rica, Nicaragua, El Salvador, Honduras, Guatemala and the Dominican Republic, as well as the Australia and Morocco bilateral agreements. The political reality is that neither the Bush administration nor Congress is eager to put any free trade agreement to a vote on Capitol Hill before the American voters have their say in our elections later this year.

The day of political reckoning, however, on these pending free trade agreements and several now in the works with other countries (for example, Bahrain, Colombia and Thailand) will not be postponed very long. If not in a lame duck session of Congress later this year, then early in the new Congress next year, the president will need to ask lawmakers to put the substantive work of our negotiators, with or without further executive review, to an up-or-down vote.

When the political dust of 2004 has settled, the core policy challenge that will face the next president on trade policy will remain the same: forging a bipartisan approach to free trade that serves both the global and national interest.

Fortunately, for the president and for the country, there are helpful lessons to learn for meeting that central challenge from the success in 2003 of the U.S.-Chile Free Trade Agreement (FTA), one of only three such agreements approved by the Congress in the ten years since it voted in favor of the North American Free Trade Agreement (NAFTA) in 1993.

An Historic Agreement

With their success in winning congressional approval in both countries in 2003 for the U.S.-Chile FTA, President George W. Bush and President Ricardo Lagos of Chile made history in the Americas.

After two years of negotiations launched on November 27, 2000, the two presidents rightly shared the credit for achieving our first such agreement with a South American country when the Chile FTA went into effect on January 1, 2004. This agreement is one of only six free trade agreements that the United States now has in effect with any of the world's 191 countries.

As Washington moved from the successful completion in December 2002 of two years of substantive FTA negotiations to the political realities of Congressional approval last year, the crucial fact that a Republican president succeeded in completing an agreement that a Democratic president began suggests an important breakthrough opportunity, and a critical post-election priority, for the next administration.

John O'Leary was the United States Ambassador to Chile from 1998 to 2001.

With the overwhelming Congressional approval of the Chile FTA, both Democrats and Republicans on Capitol Hill moved beyond politics as usual and toward a bipartisan international trade policy for the United States.

Clearly, both sides made their December 2002 deal only after satisfying themselves that they had achieved a "win-win" outcome at the negotiating table — an outcome that will result in the ultimate removal of tariffs, quotas, subsidies and other trade barriers that impede, rather than enhance, the free flow of goods, investment, services and ideas between two American democracies that share the same core political and economic values.

The successful conclusion to 14 rounds of negotiations brings to reality a vision first presented in 1991 by President George H.W. Bush to Patricio Aylwin shortly after his election as president restored democracy to Chile. This success will breathe continuing new life into the ambitious 34-sided negotiations begun in April 1998 at the Second Summit of the Americas in Santiago aimed at reaching a free trade area of the Americas (FTAA) by 2005. The original timetable of these unusually complex negotiations now seems less important than the sustained and pragmatic pursuit of hemispheric economic integration that the negotiations themselves continue to encourage.

In the case of Chile, the 11-year delay between the thought and the deed of free trade resulted, for the most part, from a failure in U.S. politics that has hindered the ability of our workers and our businesses to succeed in the global economy.

With the advent of globalization, our Congress had yet to figure out how our labor and environmental concerns should relate to our trade liberalization efforts. In the recent past, the Congressional debate had taken on a sharply partisan tone. Most Democrats championed the cause of labor and the environment, while most Republicans favored free trade. The two parties could not find the common ground on which to advance our national interests in conducting a vigorous and engaged international trade policy.

The Chile FTA offered the new Congress a way out of an old political box. With labor and the environment provisions in the text of the Chile FTA — no NAFTA-like side agreements this time around — this free trade agreement broke new political ground. As envisioned by Clinton and as forged by Bush, the most striking thing about the Chile FTA was the new opportunity that the 800-page agreement among the trade negotiators presented to our Congress to move beyond old politics and toward a bipartisan international trade policy.

Voices of dissent: *While the U.S.-Chile FTA was successfully steered through both nations' governments, it faced opposition from some in both countries, like these Chilean Communists.*

After November 2, where should our country look for opportunities to build on the success story that now is the Chile FTA?

I think that there are at least two important strategic areas where our national interests can be well served by smart applications of the key lessons for our international trade policy that arise from the ultimate success of the Chile FTA. Central America, in the short term, is the first. The Middle East, in the long term, is the other.

Moving North, Moving Forward

Recently, I took the winding road through the El Salvadoran countryside from San Salvador to Santa Ana with two

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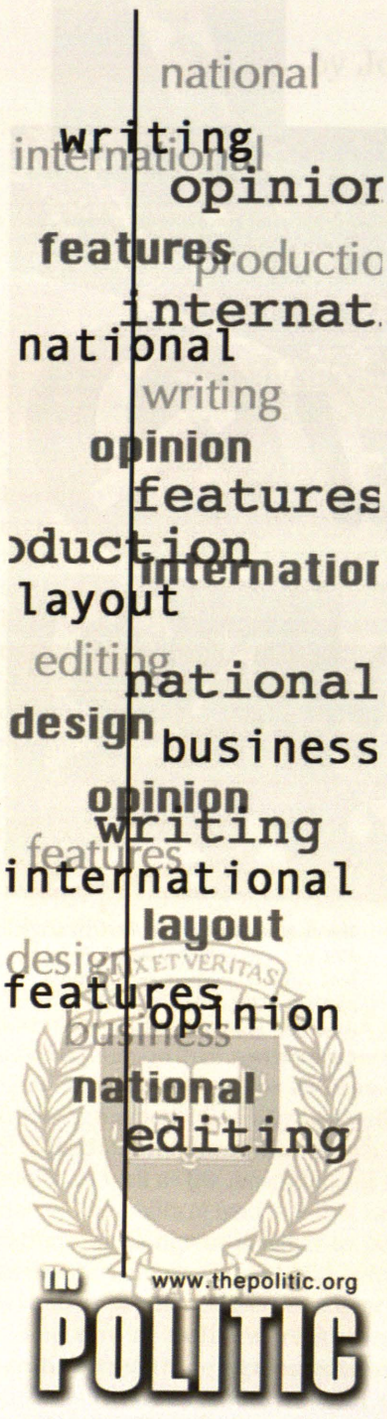

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Chilean friends. The road we took together signifies, in many ways, the way forward on free trade in the Americas.

Ambassador Daniel Carvallo, an official in Chile's foreign ministry, and Edda Rossi, Chile's chief negotiator on the environmental chapter of its free trade agreement with the United States, made the two-hour trip to tell the 12-year story of how we achieved our first free trade agreement in South America.

At a public forum in Santa Ana, they spoke — as they had the night before in San Salvador — of lessons learned from their country's success that might assist their Latin American neighbors who seek the economic and political benefits of free trade with the world's largest economy.

As they did earlier the same week in Costa Rica, they spoke of the need to engage constructively with the United States on sensitive issues of labor and the environment that are central to reaching trade agreements that can pass political muster in both the developed and the developing world.

And they left our neighbors on the isthmus that connects the Americas with a better understanding that the way forward toward the FTAA will require Congressional approval, in either a post-election session or in the next Congress, of the recently negotiated Central American Free Trade Agreement.

The most savvy Central American observers of the difficult political issues that always arise at the intersection of international trade and national politics already understood one very important fact. In the United States, Congressional approval of CAFTA is not going to be an easy task.

The big win on Capitol Hill for the Chile and Singapore FTAs certainly represents the political high-water mark for free trade in this Congress just as it offers the promise of the path toward a bipartisan international trade policy for the future. But in the wake of a contentious political season, we can expect a CAFTA debate in the Congress, whether in 2004 or 2005, that will be as contentious as the 1993 NAFTA debate, and maybe even more so.

That analysis is not self-evident. For example, the day after the U.S. House of Representatives approved the Chile FTA with an overwhelming 270-156 vote, the *Wall Street Journal* ran an editorial hailing the advent of a new free trade majority in our Congress that would carry over to future consideration of other hemispheric trade deals. The political reality is different.

Much closer to the mark was the *Washington Post* editorial that followed the similarly lopsided 67-30 Senate vote for approval. Careful observers, the editorial correctly suggested, would look not to the Chile FTA's vote margins but to the clear voices in that Congressional debate warning that terms of trade, particularly on labor and environmental issues, that were acceptable on a broad bipartisan basis in the case of Chile might well be unacceptable in the case of Central America. In the *Post*'s view, CAFTA now is at risk. And that political risk is not diminishing with millions of lost jobs in the United States now an issue in an election year.

Failing to find the common ground on CAFTA would signal a sharp setback for the political, social and economic cohesion of our hemisphere in a highly competitive global economy. A CAFTA failure, moreover, would inflict incalculable harm on prospects for ultimate success on the FTAA that President Clinton helped launch at the 1994 Summit of the Americas and that President Bush has helped move toward realization in 2005 or thereafter.

In such an unsettled domestic political climate on the trade front in Washington these days, lessons from the U.S-Chilean success story for Central America and the United States about how to shape "win-win" free trade agreements to connect the Americas may be welcome for those who seek to secure a bipartisan trade policy for the United States in the years, and decades, ahead.

From Santiago to Cairo

In December 1994 in Miami, President Clinton set forth a bold vision of free trade in the Americas for 2005. As that then-distant date approaches, the reality of our Chile FTA, our six-way CAFTA negotiations with Central America and the ongoing progress toward a Free Trade Area of the Americas are key milestones en route to an historic change in economic integration in the Americas.

In June 2003 in South Carolina, President Bush put forth a similarly

stirring idea of a better future, built on a long-term move toward free trade elsewhere. His focus: the Middle East. His time frame: 2013.

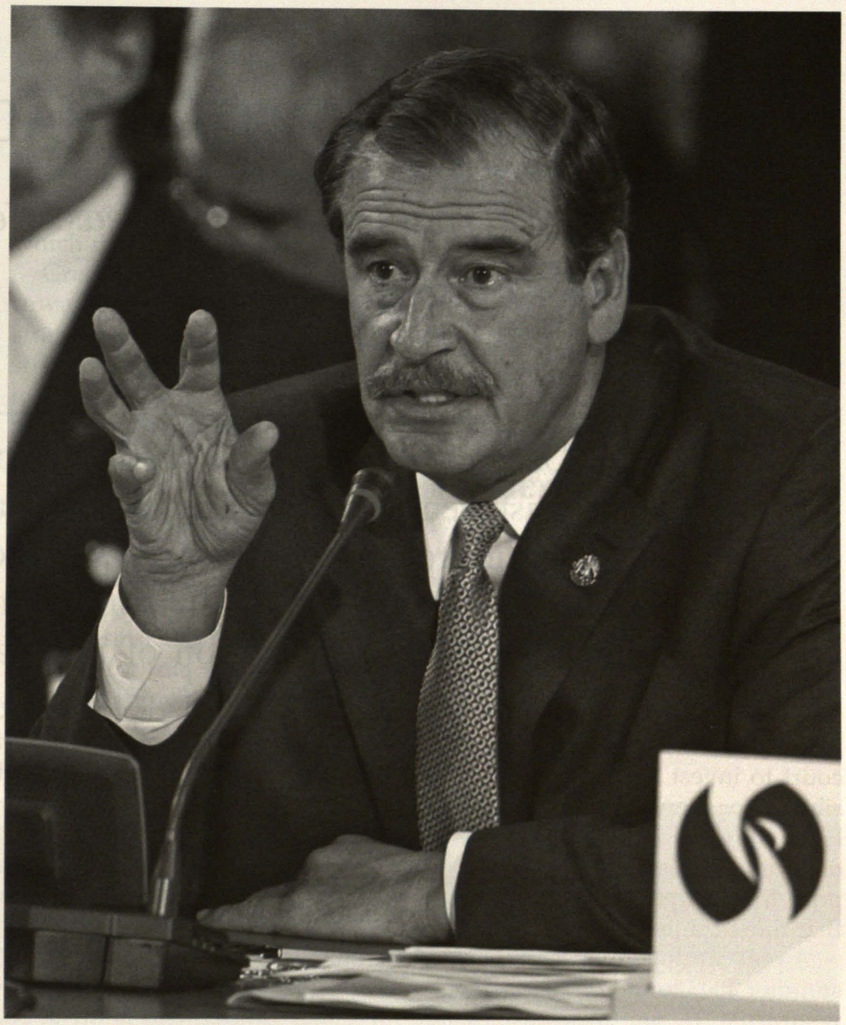
After the president's statement of a new strategic purpose for economic policy in today's strife-torn Middle East, it is not too soon for all who embrace the principle and promise of free trade to start drawing lessons about how to advance this agenda from Santiago to Cairo, based on the decade-long road from Miami to Santiago.

In a notable column in the *Washington Post*, published just two weeks after President Bush's speech, United States Trade Representative Robert Zoellick laid out a road map for what he called "a return to the cradle of free trade" in the Middle East. In that essay, Zoellick left no doubt that the United States is now committed to a broad trade strategy that, as in the Americas, will include the negotiation of comprehensive free trade agreements. And that, of course, is where Chile comes in.

While the Middle East enjoys two of the four FTAs that preceded our Chile agreement — with Israel in the 1980s and Jordan in the 1990s — neither of these accords comes close to providing the guidance for thinking about a 21st century free trade pact that the Chilean agreement offers. The negotiators on both sides who recently succeeded in concluding the U.S.-Morocco FTA, like those now at the negotiating table on the U.S.-Bahrain FTA, cannot help but have the Chile FTA in mind as they seek to move forward.

Indeed, in publishing our road map toward free trade in the Middle East, Zoellick made that explicit: "Eventually, these bilateral agreements will be expanded into sub-regional agreements by bringing in willing countries that demonstrate a commitment to openness and reform ... Within a decade, we hope to meld these sub-regions into a historic Middle East Free Trade Area." You can begin to connect the Chilean-Middle Eastern dots from there.

Chile, and Chileans in and out of government, have many lessons to share with the Middle East about the benefits of openness and reform in strategically positioning a country as a viable candidate to become a free trade partner of the United States. With its first-hand experience of 14 rounds of intensive negotiations, Chile can relate how a developing economy finds common ground with a developed economy through an open and transparent economic relationship involving everything from electronic commerce to intellectual property, from trade in goods to trade in services, from rules of origin to rules of dispute resolution.



Speaking for the Americas: *Mexican President Vicente Fox addresses a special summit this year, where the NAFTA members reaffirmed their goals under the agreement.*

Perhaps most importantly, with Middle Eastern countries that embrace the move toward economic freedom, Chile can help share invaluable lessons in the international politics of free trade on pivotal trade-related issues, such as worker rights and environmental protection in a global economy.

You might not have thought that the free trade road from South Carolina to Cairo converged with that from Miami to Santiago. Nonetheless, when it comes time for the next administration to choose free trade routes, the bipartisan road that led to our historic agreement with Chile should be the road most taken for the United States. P

PROSECUTING SADDAM

International Justice Breaks New Ground

by Tom Parker

Last December, the Iraqi Governing Council announced the establishment of an Iraq Special Tribunal (IST) to try Saddam Hussein and his cronies for their crimes. This groundbreaking initiative has received surprisingly little attention, but it marks an important new development in the application of international criminal law.

Unlike its United Nations-sponsored cousins in The Hague, Arusha and Sierra Leone, this is the first such court to invest local officials with the primary responsibility for managing cases and bringing them to trial. International funding will go where it is needed most, on rebuilding local judicial capacity and on victim support. Most important of all, it is the reckoning process that most Iraqis want to see.

A poll conducted by Physicians for Human Rights in summer 2003 found that 98 percent of Iraqis questioned would like to see those responsible for major human rights abuses during the Saddam-era punished. Indeed, 77 percent favored some form of legal process. The widespread abuse of human rights under Saddam Hussein's regime is one of the few common unifying experiences shared across the entire country.

The International Center for Transitional Justice reported in June 2003 that the support for locally-based trials with Iraqi personnel was significant. The report also noted the pride felt by Iraqi legal professionals and their strong desire to restore the dignity of the Iraqi legal system. Iraqis are confident that a sufficient number of judges, investigating magistrates and prosecutors untainted by the crimes of the former regime could be found to staff and superintend the trial process.

The Coalition Provisional Authority (CPA) spent almost six months discussing transitional justice options with a wide range of Iraqis. It organized working groups and conferences on subjects as diverse as truth and reconciliation models and forensic anthropology. Once it became clear that the Governing Council favored the creation of an Iraqi-led tribunal applying international law, the focus shifted to how best to support this process. CPA advisers worked closely with the Council to prepare a Statute for the tribunal which reflected the current state of international criminal law. Similar effort has gone into the preparation of Rules and Procedures for the tribunal, although these are still in draft form.

Equal weight was given to advising Iraqis on how best to tackle an overwhelming catalogue of abuse — perhaps as many as 300,000 deaths and many more incidences of rape, torture and wrongful imprisonment. The CPA recognized from a very early stage that the Iraqis would require some assistance in this area. In June 2003, Ambassador Paul J. Bremer III established the CPA's Crimes against Humanity Investigations Unit to provide investigative support and assistance where required.

The priority for this unit was to develop an investigative strategy. Iraq is an evidence-rich environment and the challenge for investigators is to avoid getting overwhelmed by the scale of Iraq's tragic history. It is vital that investigations are both focused and coordinated. To this end, the CPA urged that the Governing Council limit the range of the tribunal by restricting its scope to violations of international law like genocide, crimes against humanity and war crimes, and this advice was heeded.

The CPA also suggested that the tribunal strictly limit the number of cases brought before it. International crimes are complex and time-consuming both to investigate and to try. It is important to set attainable goals. At the end of the Second World War, only 24 senior Nazis were brought before the International Military Tribunal in Nuremburg. The most recent U.N. Tribunal in Sierra Leone similarly intends to try no more than 25 cases.

Without some form of constraint on numbers, trials could drag on for decades at great public cost, and with

Tom Parker served in Baghdad for six months as the U.K. special adviser for Regime Crimes Investigations. In Iraq he also served as the head of the Crimes Against Humanity Investigations Unit for the Coalition Provisional Authority. He is currently a consultant to the International Security Studies Program at Yale University.

each passing year, the meaning of such trials would become increasingly diluted. The International Criminal Tribunal for the former Yugoslavian which initially opened its doors to all manner of cases large and small has taken almost 18 years to try approximately 100 cases at a cost of over $1.5 billion. Although the Yugoslavia Tribunal has achieved a great deal, until recently there was little coherence to its approach and many people in the Balkans have found its deliberations strangely unsatisfying.

CPA advisers have recommended that in Iraq, the initial investigative effort should be focused on no more than 20 or so targets currently in Coalition custody and a handful of senior Ba'athists still at large. A number of NGOs, such as Indict and Human Rights Watch, have already collected sufficient material to suggest a *prima facie* case exists against a significant number of these individuals. CPA advisers have recommended targets carefully chosen to reflect the hierarchy of culpability already identified by these NGOs as well as by local Iraqi human rights activists. These targets are all individuals who are immediately recognizable to the Iraqi public rather than anonymous prison guards or mid-ranking army officers.

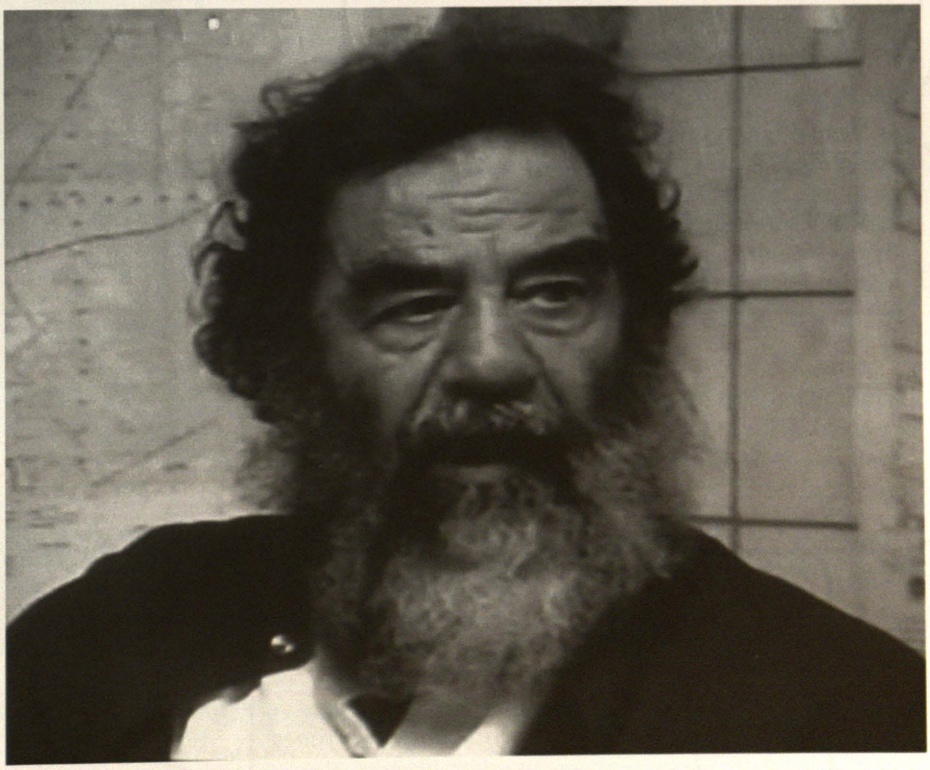
It is also important that the cases heard by the tribunal broadly involve incidents that reflect the temporal and geographic spread of the regime's crimes and include events such as the persecution of the Fayli and Barzani Kurds, the attack on Halabja (1988), the Anfal campaign (1988), the occupation of Kuwait (1990), the suppression of the post-Gulf War uprising known locally as the Intifada (1991), the persecution of the Marsh Arabs and the systemic torture of political opponents of the regime. The tribunal's defendants will be selected with the need to provide for a thorough accounting of the regime's crimes very much in mind.

International law places great emphasis on the principle that cases should be resolved as locally as possible. This principle is enshrined in Article 17 of the Statute of the International Criminal Court. Restoring respect for the rule of law will be a vital step in the successful reconstruction of Iraq. It is difficult to conceive of a more high-profile or symbolic manner in which this could be achieved.

Great steps have already been taken toward this goal. An investigative strategy is forming. Much of the infrastructure necessary for investigations to commence will soon be in place. A budget of $75 million has been made available to support crimes against humanity investigations. Training in international criminal law has started for Iraqi legal professionals. A team of 50 legal and investigative experts assembled by the U.S. Department of Justice to assist the tribunal are expected to leave for Iraq in the near future.

These things do take time, but the prize is worth waiting for. A televised judicial reckoning which observes accepted international standards of due process could become a civics lesson for the whole country. The tarnished reputation of the Iraqi legal system could be restored. And most important of all, Saddam's many victims will finally receive a portion of the redress they so richly deserve.

"A televised judicial reckoning which observes accepted international standards of due process could become a civics lesson for the whole country."



A test case: *Saddam Hussein, pictured here shortly after his capture by U.S. forces, will likely face Iraqi prosecutors in a special tribunal.*

SWINGING INTO NOVEMBER

In theory, a presidential candidate has to work hard to win each of the 50 United States in order to achieve the presidency. In 2004, however, more than half of the states in the union are firmly committed to either President Bush or Senator Kerry. Consequently, the candidates and the country are left with a relatively small number of "swing states" – states that are very much in the balance between Republicans and Democrats and that will thus determine the next president of the United States. It is these states that the candidates will lavish with their attention from now until November; it is these states that will receive the lion's share of media attention; and it is the residents of these states that will ultimately have the power to decide the presidency. Here is a breakdown of some of the battlegrounds for the 2004 election:

Minnesota

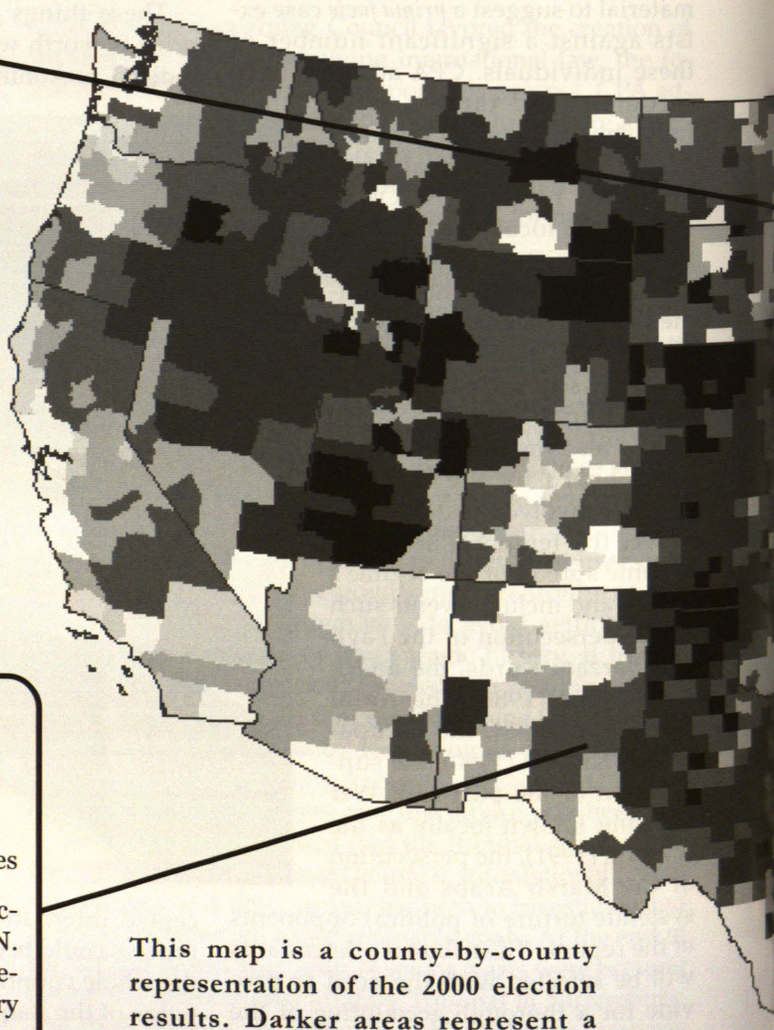
Electoral Votes: 10
2000 Vote: Gore by 2.4 percent
Congressional Breakdown: 4 R, 4 D
Since 1980, voted for the winner: 2 times

Once firmly a blue state, Minnesotans have demonstrated their independent streak in recent years electing several Republican lawmakers including Norm Coleman to the Senate in 2002 ... Minnesota was the only state to vote against the reelection of Ronald Reagan in 1984, voting instead for favorite son Walter Mondale.

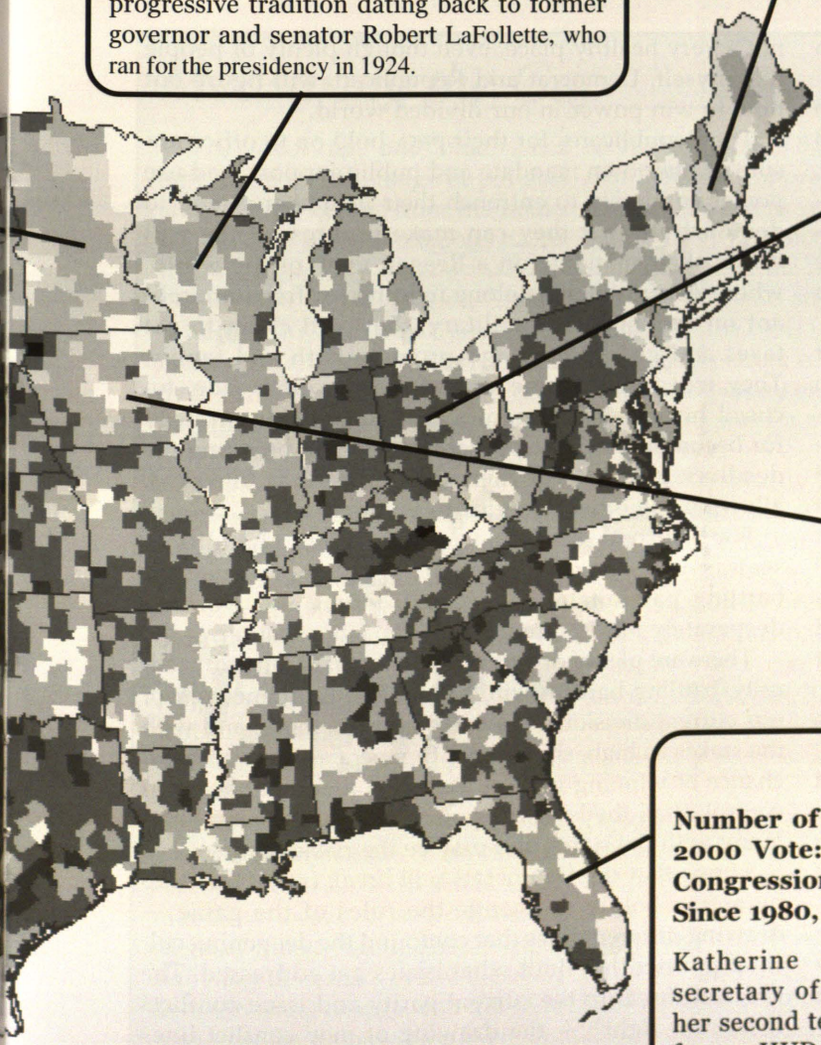
New Mexico

Electoral Votes: 5
2000 Vote: Gore by 0.06 percent
Congressional Breakdown: 2 R, 1 D
Since 1980, voted for the winner: 5 times

Democratic Gov. Bill Richardson, former secretary of energy and ambassador to the U.N. under President Clinton, is likely to receive serious consideration as a running mate for Kerry ... 42.7 percent of New Mexicans are Hispanic, the largest percentage of any state.



This map is a county-by-county representation of the 2000 election results. Darker areas represent a higher concentration of Bush voters, while lighter areas voted in higher numbers for Gore.



New Hampshire

Number of Electoral Votes: 4
2000 Vote: Gore by 1.27 percent
Congressional Breakdown: 2 R, 0 D
Since 1980, voted for the winner: 6 times

27 percent of New Hampshire voters are registered as independents ... The chairwoman of John Kerry's national campaign is former New Hampshire Governor Jeanne Shaheen.

Wisconsin

Electoral Votes: 10
2000 Vote: Gore by 0.22 percent
Congressional Breakdown: 4 R, 4 D
Since 1980, voted for the winner: 4 times

John Kerry had a difficult time holding off Democratic rival John Edwards in the Wisconsin primary, winning by only 6 percentage points ... Wisconsin has a strong progressive tradition dating back to former governor and senator Robert LaFollette, who ran for the presidency in 1924.

Ohio

Number of Electoral Votes: 20
2000 Vote: Bush by 3.51 percent
Congressional Breakdown: 12 R, 6 D
Since 1980, voted for the winner: 6 times

In the first three years of Bush's presidency, Ohio lost over 200,000 jobs, making it a key battleground state in the debate over the economy.

Iowa

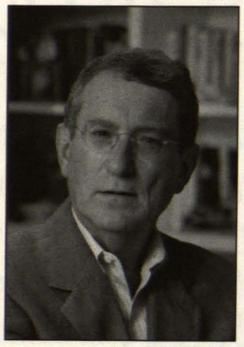
Electoral Votes: 7
2000 Vote: Gore by 0.34 percent
Congressional Breakdown: 4 R, 1 D
Since 1980, voted for the winner: 4 times

Kerry's victory in the Iowa caucuses gave him momentum on his way to the presidential nomination ... Democratic Gov. Tom Vilsack, whose wife endorsed Kerry before the states' caucuses, is sometimes mentioned as a possible vice-presidential candidate.

Florida

Number of Electoral Votes: 27
2000 Vote: Bush by 0.01 percent
Congressional breakdown: 18 R, 7 D
Since 1980, voted for the winner: 5 times

Katherine Harris, the famed Florida secretary of state in 2000, is running for her second term in the U.S. House ... Bush's former HUD secretary Mel Martinez is trying to pick up retiring Democratic Sen. Bob Graham's seat for the GOP.



POLITICAL DEADLOCK IN AMERICA

Confronting the "Two Americas"

by Stanley Greenberg

Today, we are caught in an ugly politics of parity that diminishes the nation. The two parties are joined in a destructive struggle – both trapped, neither really able to vanquish the other, but each with a realistic chance of winning any time the battle is rejoined.

The result is not only a rising political acrimony but a diminished set of policy options for the country.

The politics of the Two Americas has changed the partisans. With the two parties closely matched and with each party having an equal chance for victory, there are strong incentives to get as many votes as possible — and to elevate the passions — from your existing partisans. The result: partisans have become more partisan. Politics has become more polarized. America has become more divided.

The current divide has actually formed over the last half-century, when no party has really succeeded in dominating at the polls over extended periods or commanding the realm of ideas. This uncertainty has invited a series of bold efforts by both the Democrats and Republicans to become the leading party of the era, but each fell short, shaking up political loyalties without creating a new majority in the country. Kennedy and Johnson, Nixon and Reagan, Clinton and Gore all fell short. That set us on the road to political deadlock and deepening political divisions, particularly in the last decade.

In this culminating period since 1992, closed by three national elections, our politics has become cultural, with each side offering distinct and counterpoised views about government, values, the family and the best way of life. The politics of culture has pushed other voting issues off the public agenda, though not out of the consciousness of ordinary voters.

That is not the way it was and, most importantly, not the way it has to be. I am frustrated with the diminished politics that parity fosters. The Two Americas is not a very healthy place, even though plenty of people like myself, Democrat and Republican, will figure out how to win power in our divided world.

The Republicans, for their part, hold on to office unsure of their own mandate and public support, and use power ruthlessly to entrench their incumbency and to demonstrate that they can make progress. They will center their mandate on a Reagan view of the world, where America stands alone fighting for freedom, reliant on an unequaled military; they will claim to cut taxes and government and promote faith and family. They will "steal" some votes from the other side, focused heavily on Hispanics. The Republican strategy for becoming the indispensable party and breaking the deadlock is to enlarge their side of the Two Americas, allowing the other America to wither.

For their part, the Democrats, short just a handful of seats or votes, have fallen into the politics of maneuver, battling passionately over small issues and working desperately not to offend the right, left or center.

There are plenty of ways that Democrats can win tactically, battling hard to win, but within the framework of our current divisions. My book explores those, and with the stakes so high, shows how Democrats have an honest chance of winning in 2004. But with the Republicans in control of all the levers of power, being just tactical and living with the status quo may be the riskier course.

I hope that the Democrats will break out of this trap by acting boldly to change the rules of the game — drawing different lines that confound the deepening cultural politics that limit what issues get addressed. The greatest threat to the current parity and issue conflicts is a "new fight" — the drawing of new conflict lines with new issues that diminish or replace ones that were previously all-important and that make politics more or less important for various groups.

Stanley Greenberg is chairman and CEO of the polling firm Greenberg Quinlan Rosner. This article is an adapted excerpt from his bestselling book, The Two Americas.

I believe these are times for Democrats to champion a 100-percent America. At a time of rising inequality and stagnant living standards, Democrats can once again put the spotlight on where our nation falls short in expanding opportunity. We can pose the choice between a 100-percent America and the current Republican course that privileges the few. We can scorn the greed and special interest politics and champion the nation. Indeed, we can recall JFK's original opportunity vision, where America was admired for the kind of society we created.

A half-century of inconclusive battle has not so dampened spirits that voters do not rise up to this new call to arms. But they want one America, not two. P

Measuring the Gap

The talk of "red" and "blue" states spreads to a wide range of political and cultural issues, from the books people read to their religious habits to their opinions on the international role of the United States. Whether or not this distinction merits the attention it has received in the media and among the campaigns will be clearer by November, but it seems likely that three causes are contributing to this widening gap between Democrats and Republicans: weighty foreign policy and national security issues, the economy and the personalities of Bush and Kerry themselves.

Foreign policy: Iraq showed the world that the U.S. is willing to act even with the strong opposition of major economic partners like France and Germany. This bold willingness to go it alone demonstrates a strong and forceful contrast with what some may see as weaker U.N.-led efforts in the 90s. Many Americans — especially Republicans — view this shift as a refreshing change, and this new foreign policy has also brought many moderates over to the Republican side. A Pew Research Center study, conducted in mid-April of 2003 — soon after the fall of Baghdad — found that Bush's job approval ratings had risen to 72 percent versus 55 percent before the war. Another Pew study shows that after the war, only 44 percent of Democrats support "a strong military as the basis for peace," compared to 55 percent before the war. By contrast, 69 percent of Republicans expressed support for a strong military after the war.

National security at home seems equally polarizing. The fear of being soft on terror initially left the Democrats silent after September 11, but they have slowly begun to speak up. Fewer Democrats now feel the need to impinge upon civil liberties to fight terror. As of August 2003, only 39 percent see such restrictions necessary, versus 52 percent in January 2002.

The economy: The economy has also played a pivotal role in widening the political gap, receiving praise from the Republicans and criticism from the Democrats. Republicans point to the rising financial markets — up 40 percent from October 2002 — and economic growth, while Democrats point at recent job loss in criticizing President Bush. In a March 2004 study, 66 percent of Bush supporters — versus 11 percent of Kerry's — had favorable opinions about the economy. But in a troubling statistic for President Bush, 80 percent of swing voters criticized the economy. With 63 percent of liberal Democrats wanting to postpone the tax cuts compared 28 percent of conservative Republicans, the split between the two parties is evident.

The personality factor: The personality of the individuals now leading the Republican and Democratic parties remains a large factor in polarizing voters and entrenching them in party loyalty. Much of the Democrats' drive for this upcoming election has been motivated by a desire to get Bush — not just the Republicans — out of office. In a March survey, only 8 percent of Kerry supporters had a favorable view of Bush, whereas 26 percent of Bush supporters had a favorable view of Kerry. Opinions on Kerry, however, remain relatively unformed. Throughout the primary season, Kerry struggled for attention with eight other candidates, leaving voters little time to form clear impressions of the Massachusetts senator.

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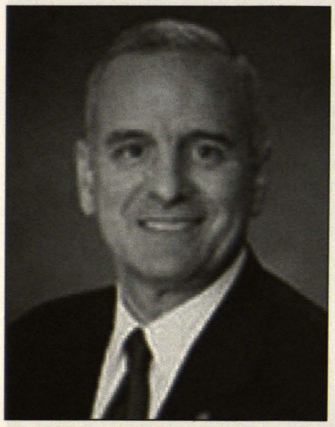
GOVERNING A DIVIDED NATION

An Interview With Senator Mark Dayton



With the nation sharply divided and polarized along political lines, the issues surrounding partisan politics have risen up to the forefront of political discourse. Minnesota's Democratic Senator Mark Dayton, who was elected in 2000 and graduated from Yale in 1969, spoke with *The Politic* regarding the divide between Republicans and Democrats and how it is affecting Washington.

You have served in politics at both the state and national levels now for over 25 years. What major changes have you seen in the political process since that time?

I think the way in which politics is communicated, especially with television and advertising and the degree of sophistication and the amount of money that goes behind it. It's an incessant bombardment of information of the public about politics, about candidates and the effects of policy on the world. People today are immersed in it — if they choose to be.

What sorts of effects do you think the phenomenon of a divided electorate is having on America and on your daily work as a senator?

In many ways, it shows the wisdom of the system and the process. I'm impressed by the incredible foresight of the founders of this country and how well they understood the tendencies of government and the tendencies of those in power, and also their desire to provide for checks and balances and offsets. The result has been that this country's overall political direction has been centrist. Those on the far left or far right don't cancel out, but through consensus it leads to the centrist path. That's proven to be sustainable for the country, though sometimes the public will is more definitely shifted to one side or the other.

With a Republican president and a Republican majority in both the House and the Senate, those leaders are trying very much to act as if they have a political mandate. They certainly have the political levers in their control to exercise the implementation of their own policies. As Democrats, it is our responsibility, in a way, as the minority to moderate those policies or block them when they're not in the best interest of the country.

It's very much the noise of democracy. We're fortunate to have a system that does have broad tolerance for political dissent and that allows tolerance to be carried out in ways that are an exercise of individual and collective rights, and that fall short of violence and political uprising which has a destabilizing effect.

Senator, you serve on committees for governmental affairs, armed services, agriculture and rules and administration. How do partisan politics play out in some of these areas?

My three years in the Senate, I've been in parity. When I arrived, it was only the second time in the Senate's history when it was evenly divided 50-50 and that had to be negotiated through a separate set of procedures and arrangements. Then with Jim Jeffords switching over to independent status in June of 2002, I was in the majority, and since 2003 I've been in the minority. So I've seen it from each perspective and the majority, even by a narrow divide of 51 to 49, is still very much a majority and gives the committee chairmanships to Republican members and allows them to make the agenda. So even with the close divide in numbers, but with the administrative power residing with the Republican leadership, it has meant that every major issue or major piece of legislation has been up for grabs — but with the Republicans taking initiative. The Republican caucus has had greater cohesion than the Democrats during the past year, especially with the leverage of the White House. It's meant the Republicans have had the upper hand, but that most things have been closely contested.

In your view, what are the major ways in which the two parties differ in their vision for America, and in what ways do they principally agree?

In the mainstream politics of the U.S. Congress, we agree on 90 percent of the matters that come before us. That is often overlooked because what more often gets the press's attention and the public's attention is where we disagree. That is understandable, but I think people have a skewed perception of the extent to which we have differences.

In my partisan view, this Republican administration believes in making the rich richer and allowing the captains of corporate capitalism the free rein to run their business and make profits and keep the profits. The Democratic view is more populist, where government looks out for all its citizens and makes sure that those who start out with less are at least going to get a manageable share of the overall benefits of this society as a matter of economic and social justice. That's where I think the major differences arise — who's going to keep what they have and who's going to share part of their gains with the rest of America.

What about the notion that the two major political parties are no longer ideologically different, and that they now merely differ on some select issues? Is this truly the case?

There are definitely bigger differences and they do run deep. In the matters that come before the U.S. Congress, there is probably general agreement on the fundamentals of a federal budget and the existence of federal taxes, and support for the basic functions of health, housing and national defense. The differences are about the priorities and the weighting of those priorities. It's about the way in which America as a country responds to its citizens and the rest of the world.

I think there are definite differences, but there's no monolithic Democratic party and there's no monolithic Republican party. As my colleague Paul Wellstone called it, there is "the Democratic wing of the Democratic Party." Then there are those who are much more centrist. The cost, I think in many respects, is that the Democratic Party has become a captive of the very wealthy individual and collective bodies of American society and that has blurred some important differences between the parties.

On key issues such as national security, are Republicans and Democrats acting in a unified, bipartisan manner, or is there much room for progress?

I think we operate in a generally nonpartisan manner. At the federal level, the first and foremost responsibility of the government is national defense and the protection and safety of its citizens in the homeland and the rest of the world. There is no member of the Senate Armed Services Committee or the Senate who doesn't take that responsibility as profoundly or seriously as they should. We do have honest differences of opinion on how that can be best carried out, but those are, in my experience, ones that are healthy for the process."

There is sometimes friction between the Democrats and the Republicans, but ultimately also between the Congress and the executive branch. We had hearings recently where the administration came in on the missile defense system, and it was telling for the Democrats because of their role in the political dynamic now. They have to be aggressive questioners of how that program is to be carried out. In my view, the Bush administration has fallen decidedly on the side of withholding information and acting unilaterally, not only within the world but in the formulation of government policy. Personally, I disapprove of the attitude of a lot of people who have not been elected by the American people, and who want to disregard those who have. They view a presidential appointment as akin to a papal installation, they view themselves as accountable to nobody else, and that's destructive.

In your view, are there specific things political leaders of one or both major parties must do to better meet the needs of Americans?

I think honesty and integrity are prerequisites. They are certainly right now, with the state of the world as it is and the destructive capabilities that the human race possesses, with nuclear weapons technology, especially. It is a threat to the survival of the planet and the balance of power of nation-states. These decisions on how to proceed — on whether to strengthen the United Nations or ignore it, on the doctrine of "no first use," or as President Bush has pronounced, one of preemptive strike — are profoundly important matters that underscore the significance of the political process and the democratic system of government. They are matters that deserve and need the attention of every American citizen, and politicians have a responsibility to do that.

Has having one of the most evenly divided Senates in our country's history been a curse or a blessing to the political process?

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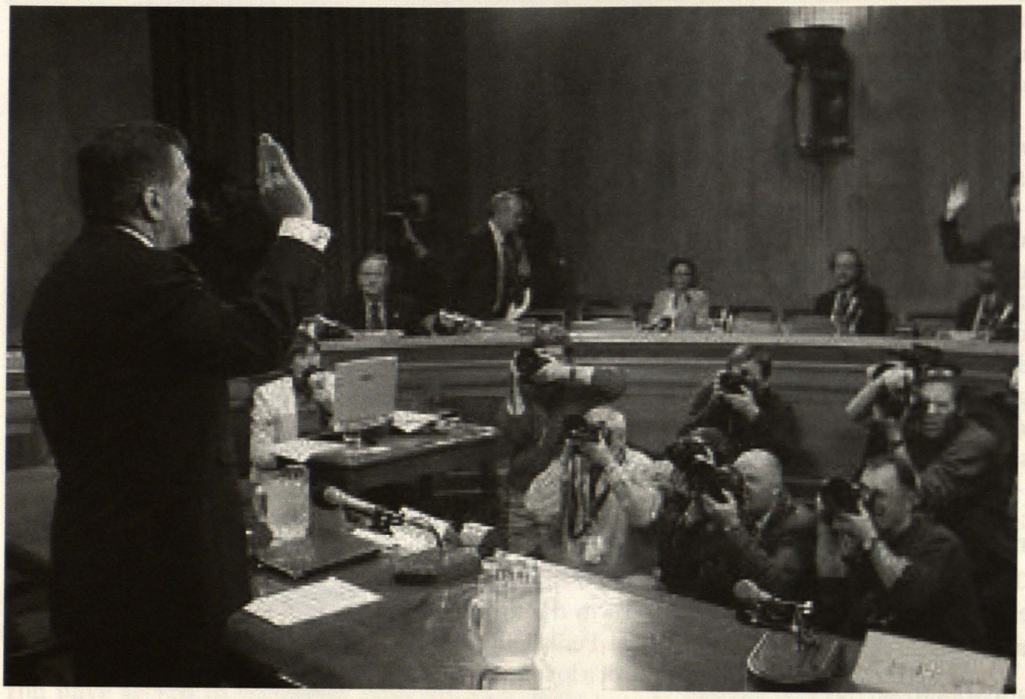


Navigating a partisan Congress: Homeland Security Secretary Tom Ridge, shown above, had his confirmation delayed until Republicans regained control of the Senate in 2002.

problems, failings and shortcomings we see in our own government are first and foremost problems, failings and shortcomings of the human race, individually and collectively. In other countries where they have only one political party or candidate to choose from, they have much worse governance than we have. If you look at countries that have a plethora of political parties, that much of a diffusion of political power causes very real problems in having lasting government systems.

The two-party system is a very imperfect system but it exists within an even more imperfect human race. But no one has been able to show a better alternative. Democracy is an ongoing work in progress, and it's just that much more important to have everyone involved within the existing construct, whether forming a new political party or shifting an existing one. The opportunities to be a participant have never been greater.

What are your views on party loyalty, and how have you seen it change in character over the last four years?

Within Congress, I think people's loyalties are more towards their own personal interest as a politician and to the people they represent as their political base of support. I think party loyalty is very limited and not as influential a force on members, except when operating out of necessity. In the House, for example, where the structure of the House and the number of members requires a more defined committee and operational structure, the political caucus is the instrument of power. The majority caucus is set up in a way which has a hierarchy and a Rules Committee that runs the show — though members, I think, would still prefer to operate on their own, but out of necessity have to come out together in a more cohesive and monolithic force, despite whatever disagreements they have. In the Senate we have greater latitude, although again we're organized by caucus, and so members' loyalty to that caucus is felt as a guiding force. We have a lot of interplay (especially now that it's closely divided)

It's been the decision of the American people. In this collective way in which we decide the composition of the Senate, I don't see it as a blessing or a curse. I see it as a blessing in how the system has been devised. It's the hand we've dealt ourselves as a country and we need to figure out how to play that hand as best as possible. I have not been in the Senate at a time where there was a decisive majority, and I am told there were advantages to that and there were disadvantages. When Lyndon Johnson had a 63-member majority in the Senate, he ran it like a fiefdom and any member of his own caucus who didn't like it was left out into the cold. When it was 50-50, the leadership got too dictatorial, and Jim Jeffords became an independent and shifted power to the Democrats.

Do you think the two-party system in America represents well the views of the American people?

Well, the government is not like Burger King. You don't just get to have it your way. With 290 million people with many regional and self-interests, to have a government that sifts through all of those differences, under our protection of equal rights and opportunities, coming to a composite or resolution of those differences is an art of the political process. Sometimes the picture looks better than others. Winston Churchill once said, "Democracy is the worst form of government, except for all the rest." My own view is that most of the

"Well, the government is not like Burger King. You don't just get to have it your way."

with Democratic members individually going and cutting their own deals in their own best interest — or what they believe is the best interest of the state or the country — with members of the other side. "The caucus be damned" is their view, and if they are high-enough ranking members, then they basically do that with impunity. So, it's more of a free-for-all with everyone looking out for themselves and taking maximum advantage for themselves individually and their states or interests.

It's a competitive, sometimes conflicting, free-for-all, but again I think that was very much the intent of the designers of the system. They recognized that was one of the driving forces of human nature and they wanted a way in which that could be carried out peacefully and democratically. It was to be in a way that prevented any person from gaining too much power.

When President Bush wanted Congress to give him the resolution to authorize the war in Iraq, six months before he even made that decision himself, I voted against that resolution in part because I believed it was completely unconstitutional. I faulted Congress for abdicating its responsibility as the sole authority to decide on the declaration of war. But the President wanted a resolution with no restrictions and kept saying, "Don't tie my hands, don't tie my hands." George Washington, at the time of the Constitution, said, "In matters of power, trust not in the goodness of man, but bind him in chains to the Constitution." The founders didn't want to tie the president's hands, but they wanted to bind him in chains to that document and to that responsibility to share power and share authority. They knew the natural tendency was for someone to try and seize all of that.

What advice would you give to college students and younger people who are interested in being in politics?

Get involved in whatever way or opportunity is available to you — this year especially, with vigorous political campaigns, either presidential or for the Congress or for the state legislatures. I don't think it should necessarily be for someone who's at the top. Find someone who you get impressed with and who inspires you, whether that person is running for city council, or the state legislature or president of the United States. Find a way where you can have some kind of beginning role, and be willing to start anywhere. Campaigns are very unstructured and fluid operations. In my younger days, I started out licking stamps and driving cars, and even now as a senator, I'm often still licking stamps and driving cars.

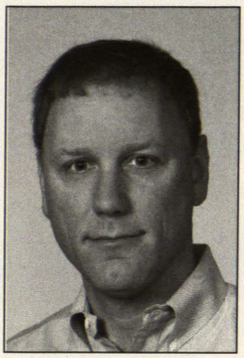
But going with the attitude that you want to serve in a high-level policy position, you really limit the opportunities. You should start out and impress those around you by your strengths and your interests. It takes a willingness to be involved, without the ego that often afflicts too many people in politics, but also gets in the way of others getting the experience they need. It really is beneficial, and I learned a lot from carrying briefcases and suitcases. I was willing to do anything, and I didn't care what the title was and what the structure was, as long as I had a meaningful role. If the opportunity avails itself, run for office, become your own politician and your own person. Running for office — that's an incredible education, win or lose. They are very different outcomes, but the education and personal growth are priceless.

In what ways did your Yale experience train you for a career in public service?

When I arrived at Yale in the fall of 1965, I was pre-med and I had worked three summers at a hospital in Minneapolis. My worldview was extremely limited, and my family was not a political family. They were a Republican business family. My passion was ice hockey and the first couple of years, it was my focus. I majored in psychology and went through all of the pre-med requirements. In my sophomore and junior years, the war in Vietnam expanded in scope and exploded in my growing political awareness. I learned from the chaplain at Yale, William Sloane Coffin, who was a strong political activist and religious leader. From going to Battell Chapel, it broadened my scope and one of the fellows in Calhoun College, Malcolm Boyd, also influenced me.

The assassination of my then-political hero Robert Kennedy really sparked my conscience and I withdrew my applications from medical school and became involved in organizing opposition to the Vietnam War. My graduating class turned our graduation ceremony in part into a protest against the war and the Nixon administration's handling of the war. So that launched my political awareness and activities and provided my springboard into what I consider public service.

"Within Congress, people's loyalties are more towards their own personal interest as a politician and to the people they represent as their political base of support."



FOLLOW YOUR LEADER

Partisanship on the Use of Force

by Eric Larson

One of the most fateful decisions a president can make is to deploy U.S. military forces abroad. While most of these operations do not involve combat — instead consisting of deterrence of potential aggressors, non-combat operations such as humanitarian relief, shoring up security at U.S. embassies or supporting the evacuation of noncombatants from hot spots — presidential decisions to employ U.S. combat forces to achieve national goals are particularly sensitive.

Research has shown that Americans' support for and opposition to the use of U.S. military force abroad is largely conditioned on their beliefs about the importance of the stakes that are involved in the situation, the prospects for a successful outcome and the actual or likely costs, especially in terms of U.S. military casualties.

Partisan leadership also plays a specific — and critically important — role in influencing the public's beliefs about the operation: national leaders support or criticize U.S. military interventions, and seek to maximize support for their positions from their political base and, they hope, from others. For their part, rather than mastering the often arcane details of the benefits and costs of a military operation, members of the mass public expect leaders to explain the alternatives and relative merits of the choices being debated, and use partisan cues to clarify their own positions: when their natural partisan leaders support the use of U.S. military forces, there is a higher probability that they also will.

The result is that a bipartisan consensus among national leaders in favor of a military intervention enhances the likelihood of bipartisan support from the public. When partisan leaders are divided, the public generally can be expected to divide in a similar fashion. In addition, when leaders within each of the parties differ, this confusion also will be reflected within the rank-and-file of their parties.

Eric V. Larson is a senior policy analyst at the RAND Corporation. He has worked at the White House Office of Planning and Evaluation, on the National Security Council Staff and at the Institute for Defense Analyses.

As fashionable as it is to declare that the support of the American people should be prerequisite for military action — and as desirable as it may be for national leaders to agree on the merits and conduct of military operations — bipartisan consensus from leaders has historically been elusive, and majority support for U.S. military operations has, as a result, been equally fleeting.

Cold War Consensus, Partisan Divisions

There generally was agreement during the Cold War on the nature of the Soviet threat and support for a coalition strategy that relied upon multilateral and bilateral alliances and other institutions and mechanisms to manage that threat as well as foster econimic growth, comity and cooperation among the Western nations. Even during this period of broad consensus about the nature of U.S. national security interests in the world, however, growing partisan divisions between leaders contributed to declining support for U.S. wars and military interventions.

The Korean War: In July 1950, President Truman received bipartisan congressional support for his military response to the invasion of South Korea, and the public followed. According to the National Opinion Research Center (NORC), 78 percent of Democrats and 74 percent of Republicans polled supported participation in the Korean War (i.e., believed that U.S. entry had not been a mistake). Following the entry of China into the war in November, Republican leaders relentlessly criticized Truman's strategy of prosecuting a more limited "police action," and by December of that year, while six in ten Democrats continued to support the war and their president, only four in ten Republicans did so. Rank-and-file Republicans not only were less likely than Democrats to support the war, but were also more inclined to support the sort of escalation favored by their leaders.

The Dominican Republic: The April 1965 invasion of the Dominican Republic soon led to bipartisan skepticism about the credibility of the Johnson administration's justification for the intervention — namely, that the Dominican rebels who threatened the government were in fact dominated by Communists and that their victory would have inexorably led to a Communist government in Santo Domingo. By November 1965, just over half of those surveyed said in a Gallup poll that the United States had done the right thing in sending troops.

The Vietnam War: In the Vietnam War, the same pattern that was observed in Korea generally held. Whereas a modest majority of 54 percent of both Democrats and Republicans supported the war in July 1965, by March 1968, following the Tet Offensive, 46 percent of Democrats continued to favor the war, whereas only 39 percent of Republicans did. When Vietnam became "Nixon's war," support from Democrats fell: where 44 percent of Democrats supported the war in February 1969 just after Johnson left office, only 31 percent did so in September 1969. By comparison, Republican support remained essentially unchanged at about 35 percent.

Under Reagan, the Divide Continues...

Military operations conducted during the Reagan period showed a similar pattern of partisan division among leaders and public.

Lebanon: Although it was often difficult to hide the misgivings they had as the operation became overtaken by events, Republicans generally supported their president on Lebanon. Democrats didn't, and only about four in ten members of the public typically supported the U.S. misadventure in Lebanon in 1982-83. The public also echoed the differences among their leaders: Gallup's polling on February 10-13, 1984 — three months after the bombing of the Marine barracks in Beirut, and one month before U.S. forces were slated to withdraw—found 45 percent of Republicans but only 17 percent of Democrats approving of President Reagan's handling of the Lebanon situation.

Grenada: Even the "quick and decisive" U.S. military intervention in Grenada (1983) sparked partisanship in both support and opposition: while 76 percent of Republicans who were polled by the *New York Times* on November 18 to 22, 1983 approved sending troops to Grenada, only 56 percent of Democrats did so.

...and Persists After the Cold War

Additional evidence of a partisan divide can be found in the military operations of the 1990s, especially in the peace operations of the Clinton administration.

The Gulf War: The initial deployment of U.S. troops to the Persian Gulf after the August 1990 Iraqi invasion of Kuwait was supported by Republican, and, to a lesser extent, Democratic leaders. Likewise, fully 82 percent of the Republicans, but only 67 percent of the Democrats, who were polled by Gallup on September 10 to 11, 1990 supported the action. The run-up to the Gulf War oc-

"Partisan leadership also plays a very specific — and critically important — role in influencing the public's beliefs about military operations."

A fork in the road: *American public opinion is divided on the war in Iraq, with the recent attacks in towns like Fallujah, below, only deepening the split.*

Mixed reviews: *Although the Bush administration's handling of the reconstruction of Iraq has been sharply criticized by some in recent weeks, National Security Advisor Condoleezza Rice has staunchly defended the president's policies.*

"As fashionable as it is to declare that the support of the American people should be prerequisite for military action ... bipartisan support from leaders has most often been elusive."

casioned a spirited debate in Congress in November 1990, with Republican leaders generally supporting President Bush's plan to build up an offensive capability, and Democratic leaders somewhat divided, although generally favoring continued reliance on economic sanctions over war. Support immediately prior to hostilities was much lower for Democrats than Republicans: 67 percent of Republicans but only 45 percent of Democrats approved of the U.S. going to war in Gallup's January 11 to 13, 1991 polling, for example.

Somalia: President Bush had bipartisan support from congressional leaders for his December 1992 intervention in Somalia, and about three in four members of the general public supported the intervention as well. But the deterioration of the situation in summer 1993 following the expansion of the U.S. mission to embrace the broader goal of political reconciliation led, a few months later, to bipartisan criticism of the administration's Somalia policy. Following the October, 1993, firefight in Mogadishu, an ABC News' poll found that only 41 percent of Democrats and 29 percent of Republicans approved of President Clinton's handling of the Somalia situation; by comparison, 69 percent of the Republicans and 54 percent of the Democrats at the time said they still approved of Presiden`t Bush's earlier decision to intervene, and about six in ten in each party favored pulling the troops out of Somalia. By October 12, following the announcement of the decision to withdraw troops by the end of March 1994, 53 percent of Democrats but only 19 percent of Republicans approved of President Clinton's handling of the situation in Somalia.

Haiti: Republican leaders generally opposed the September 1994 U.S. intervention in Haiti, while Democratic leaders, still smarting from the experience in Somalia, remained wary and were somewhat divided on the matter. The result was that typically fewer than half of the public supported the U.S. intervention in Haiti. Gallup/CNN/*USA Today*'s polling on October 7 to 9, 1994, for example, found higher opposition to the presence of U.S. troops in Haiti among Republicans (69 percent) than Democrats (46 percent).

Bosnia: Democratic and Republican leaders were both somewhat divided on the introduction of U.S. ground troops into Bosnia in December 1995. The result again was that only about four in ten supported the introduction of U.S. troops, and Democrats again were somewhat more likely than Republicans to support the intervention. According to Gallup's November 27, 1995 polling, 61 percent of those who had greater confidence in President Clinton than congressional Republicans to handle the Bosnia situation favored the U.S. troop commitment, while only 28 percent of those who had more confidence in Republican leaders favored the commitment.

Kosovo: Democratic leaders generally supported the 1999 air war in Kosovo, while Republican leaders divided over the matter, leading to a modest but consistent majority of the public supporting the air war, rather low support for

the introduction of ground troops in a combat role and somewhat higher support for ground troops in a peacekeeping role. According to polling, echoes of these leadership divisions were apparent in the public as well: 52 percent of Democrats but only 46 percent of Republicans supported the air war in the Pew Research Center's April 15 to 18, 1999 polling, and 76 percent of Democrats but only 54 percent of Republicans in Gallup/CNN/*USA Today*'s polling of June 25 to 27, 1999 favored the U.S. contributing troops to the peacekeeping force that was established after Yugoslav President Slobodan Milosevic's capitulation to NATO's demands.

The Gap Widens With Bush

Despite a short-lived hiatus following 9/11, the Bush administration's tenure also has been marked by the same partisan patterns.

Afghanistan. After the 9/11 attacks by the al-Qaeda terrorist organization, the image of U.S. congressional leaders standing shoulder-to-shoulder singing "God Bless America" accurately captured the depth of the bipartisan support from national leaders for the military operations in Afghanistan that began on October 7. Not surprisingly, most Americans polled supported Operation Enduring Freedom, with support from rank-and-file Democrats only somewhat lower than that for Republicans: 98 percent of Republicans and 89 percent of Democrats supported the military action in a November 27, 2001 ABC News/*Washington Post* poll.

The gravity and imminence of the terrorist threat and the broad bipartisan support of national leaders resulted in high public support not just for U.S. military operations in Afghanistan, but also in other remote locales, including Yemen, the Philippines and the Sudan. For a brief moment, it seemed as though a new consensus on the use of force centering on the Global War on Terrorism might be possible. But the war in Iraq would change this.

Iraq. The regime change in Iraq benefited from long-standing support for the basic proposition of overthrowing Saddam Hussein: in the more than 100 times the question was asked since the end of the first Gulf War in 1991, there was not a single instance in which a majority failed to approve of a prospective U.S. ground invasion of Iraq to overthrow Saddam. But Operation Iraqi Freedom also illustrated important leadership divisions: while Republican leaders generally supported the Bush administration's moves to war, Democrats generally preferred continued reliance on U.N. inspections. Not surprisingly, fully 75 percent of Republicans — but only

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35 percent of Democrats — thought it was worth going to war in Iraq in polling by Gallup over January 3 to 5, 2003. Although there was a major rally in support from members of both parties once military operations were underway, partisan differences remained: 90 percent of Republicans but only 51 percent of Democrats supported the U.S. going to war in an ABC News/*Washington Post* poll on March 20, 2003, for example.

Not surprisingly, attitudes regarding the post-war contretemps over the administration's case for war — primarily, that Iraq had weapons of mass destruction (WMD) — also show a partisan divide: 76 percent of Democrats, but only 30 percent of Republicans, polled by ABC News/*Washington Post* on March 4 to 7, 2004 said that the Bush administration had intentionally exaggerated its evidence that Iraq had weapons of mass destruction.

In the most recent polling on Iraq by Gallup over March 26 to 28, 2004, a majority of 55 percent of Americans continued to believe that the situation in Iraq had been worth going to war over, but the divide had widened: where 88 percent of Republicans felt this way, only 29 percent of Democrats did. A gap over the larger war on terrorism also is in evidence: 86 percent of Republicans but only 43 percent of Democrats approved of the way President Bush was handling the war on terrorism in an ABC News/*Washington Post* poll on March 4 to 7, 2004.

Any Hope for Agreement?

The partisan gap of past years has become a yawing chasm. With eight months until the next presidential election, should we expect these partisan divisions over Iraq and the larger war on terrorism to sharpen, or abate? The answer is far from clear.

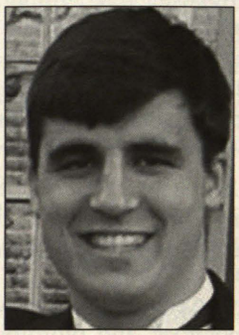
On the one hand, Democratic presidential candidate Senator John Kerry does not challenge the U.S. presence in Iraq or the war on terrorism and does not appear to have gained any public opinion advantage over his rival on these issues:

- Senator Kerry does not propose the withdrawal of U.S. troops from Iraq as former Democratic front-runner Howard Dean did; rather, his position seems to be that new U.S. leadership is needed to "build a broader coalition and win the peace in Iraq." Kerry's support for a continued U.S. presence could reduce the partisan gap on Iraq, even if some partisan differences remain in evaluations of President Bush's handling of the situation in Iraq, the question of weapons of mass destruction and other partisan-coded issues.
- Similarly, rather than opposing the war on terrorism, Senator Kerry proposes a more comprehensive strategy, eschewing a "doctrine of unilateral preemption [that] has driven away our allies and cost us the support of other nations," and devoting greater attention to the Middle East peace process, North Korea, Iran and homeland security. Although easily recognizable by specialists and more politically sophisticated members of the public, these differences — in degree rather than kind — simply are not the sort that seem likely to serve as a wedge that widens the partisan gap on this issue.
- Finally, given the high level of exposure their issues have been given, and these President Bush's persistent public opinion advantages on Iraq and national security issues in the face of withering criticism from the Kerry campaign and other administration critics, it is simply rather difficult to believe that there is much more to be gained on this issue.

On the other hand, it bears saying that a lot can happen between now and the November elections, and the Kerry campaign could in fact succeed in staking out positions on Iraq and the war on terrorism that better differentiate its positions from the Bush administration, and further polarize attitudes along party lines.

What does seem clear, however, is that the failure of national political leaders to agree on the ends, ways and means of U.S. foreign and defense policy also is likely to continue to divide the public on future uses of force. And that is a great shame, because partisan divisions over the use of force have increasingly — if somewhat optimistically — been viewed by U.S. adversaries as presenting vulnerabilities that easily can be exploited to their advantage. While the truth of the matter is somewhat more complex, the stakes in the war on terrorism are sufficiently high that the next president, whoever that might be, would do well to find common ground with his loyal opposition on policies for meeting the pressing national security challenges the nation now faces.

"The failure of national political leaders to agree on the ends, ways and means of U.S. foreign and defense policy also is likely to continue to divide the public on future uses of force."



AMERICA'S IDENTITY CRISIS

The Battle to Be an American Icon

by Chris Wells

America has always had a bit of an identity crisis, but things are getting out of hand. From the earliest days of Thomas Jefferson and Alexander Hamilton, settling upon an exact conception of what constitutes the quintessentially American experience has been impossible. From quaint scenes like those one might find at the County Line Café in Galax, Virginia, to the hustle and bustle of Grand Central Station, there are myriad types of Americas and Americans. Over time, we have come to celebrate this fact, at least in theory.

All this is well and good except for when it comes to choosing our president. The daunting task of selecting one American to represent all has never been simple, but as Bush vs. Kerry gears up, the process has rarely seemed so divisive. With the controversy surrounding the 2000 election still lingering, and with the international image of this multifaceted land more important than ever in a post-9/11 world, the shootout at the OK Corral, however overused, seems to be the only apt metaphor in the repertoire of American cultural memory. In such a scene, where bluffing can be just as deadly as bullets, only one cowboy can be left standing.

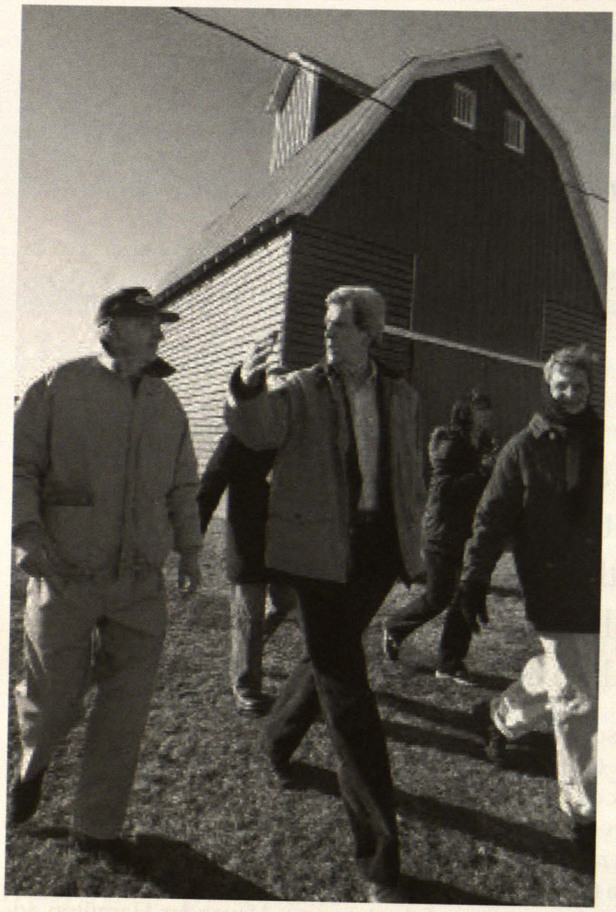
Two Old (But Important) Personas

As John F. Kerry and George W. Bush move along the campaign trail this year, they both carry with them preordained political personas. The former, for better or for worse, has long been associated with the so-called Northeastern urban establishment. His initials, JFK, bear this out far better than any of the numerous bullet points on his political resume. The latter, through no simple feat, cultivated a rural, cowboy-esque image that carried him all the way to the White House in 2000. These two candidates' images have roots deep within American political history that have major implications for a nation still struggling to present a coherent identity.

To understand the profundity of the urban-rural divide, as embodied by the competing personas of John Kerry and George Bush, one must first place this concept in historical context. Most historians would argue that this divide is as old as America itself. In many ways, this tension between the so-called simple life and the city life forms the foundation for our two-party system. When George Washington took on the task of forging the former American colonies into a stronger nation following the failure of the Articles of Confederation, he depended heavily upon the advice of two men with two very different conceptions of the new nation's purpose. As secretary of the treasury, Alexander Hamilton advocated policies — like the creation of the National Bank — that catered to the emerging business interests centered in expanding urban centers in the Northeast. The creation of such a bank has had tremendous ramifications for all of American history, as it formed a foundation for the modern American economy. Hamilton and those like him coalesced into a political party known as the Federalists.

Thomas Jefferson, as secretary of state, condemned the Federalists and their policies while presenting a significantly different vision of America. Jefferson feared that the new government, by catering to urban interests, would help recreate the type of oppressive institutions from which Americans had just freed themselves. Jefferson, as author of the Declaration of Independence, had obvious qualms with institutions like the British Crown, and his disdain for other types of large, powerful, urban-based interests, like the Church of England, manifests itself in writings like the Virginia Statute of Religious Freedom. For Jefferson, the vast expanses of America offered its citizens an ideal template upon which to construct a decentralized, agrarian alternative to the oppressive, institutional order of the Old World. With this in mind, it is no surprise that Thomas Jefferson and his supporters, known as the Democratic-Republicans, would be responsible for policy decisions like the Louisiana Purchase of 1803. It follows that no Louisiana Purchase means no Wild West, which, in turn, means no cowboys. Thus, while Hamilton's legacy can be seen today in the tangible form of the sprawling urban metropolises that grew out of fundamental economic institutions like the Federal Reserve,

Chris Wells is a sophomore in Ezra Stiles College at Yale University.



A clash of cultures? *Democratic presidential candidate John Kerry has tried to ensure his image plays well in rural areas, as well as the traditionally liberal cities of the Northeast.*

Jefferson's equally potent influence can be seen, at least in part, in that indelible emblem of the American ethos — the cowboy.

Of course, the Democrats and Republicans of today would be hard-pressed to describe their platforms as catering to definitively Hamiltonian or Jeffersonian interests. These two men's differing legacies are foundational for our current party system, but they do not fully explain it. A quick glance at the electoral map from the 2000 presidential election shows, however, huge swaths of red cutting across the Rockies (e.g. Montana, Idaho, Colorado), parts of the Midwest (Kansas, Nebraska, Oklahoma) and the South (all 11 former states of the Confederacy), contrasting sharply with intense blue concentrations around major coastal population centers like California and New York. Given the historical context of Jefferson and Hamilton, this peculiar picture is laden with historical and contemporary significance.

"There is no more singularly American description of the upcoming election than the old-fashioned shootout."

Two Snapshots

The County Line Café in Galax, Virginia, is a quiet, unassuming place. Amidst the rolling hills and tobacco fields of southwestern Virginia, one finds that the trimmings, like the tea, are simple and sweet. Otherwise bland walls are touched with bits of paraphernalia catering toward the customers upon which the County Line depends. On one wall rests a comprehensive drawing of country music's biggest stars — everyone from Johnny Cash and Merle Haggard to the newer likes of Travis Tritt and Alan Jackson. Turning to the right, one finds a small shrine to the pride of Carroll County: Kylene Barker, Miss America, 1979. Most other empty spaces are filled with framed newspaper clippings detailing Galax's proudest civic tradition, the self-proclaimed world's oldest and largest Old Time Fiddler's Convention, which will celebrate its 69th anniversary come August. Although there may be friendly disputes as to whether it sits precisely on the Carroll County-Grayson County border, the County Line elicits one unwavering response from its customers: for home-style, country cooking, the County Line is the place to go in Galax.

More than having some of the best corn bread, mashed potatoes, and pinto beans in town, the County Line exudes something far more intangible. Any non-native elicits notice upon entering the County Line, as if he or she were entering the fabled taverns of the Old West pioneer towns. Taking a momentary break from their conversations and/or cigarettes, the regulars' glances are slight and unthreatening, but noticeable nonetheless. For the casual passerby, the County Line is somewhere to fill up on sweet tea while heading north up I-77. For the regulars, it is a fixture, a steadfast supplier of the simple comforts that comprise life as they know it. The County Line is a world unto itself, and its inhabitants are content to keep it that way.

Far removed from the modesty of the County Line, in the heart of Manhattan, the architects of Grand Central Station never intended this monolithic nexus to be anything other than imposing. With an elaborate rendering of the night sky looming over head, regulars to Grand Central participate in another type of daily ritual: the commute. Unlike the quiet hum of conversation over sweet tea and cornbread, the din of commuters, cell phones and coffee in hand, striding hastily along provides the soundtrack for a scene that perhaps even Hamilton would find peculiar. Looking around, Grand Central embodies the diverse cultural interspersion we now know as the American melting pot, a concept not quite so relevant to the clientele of the County Line. With such a multitude of different faces swirling around, commuters become virtually oblivious to the particular traits and styles surrounding them, hardly noticing one another. Passing quickly through the terminal and out the host of exits, commuters traverse the world of Grand Central only as a means of moving elsewhere. Grand Central, like its clintele, begs for push-and-shove progress, whatever that means.

But politics is our business here, so what difference does it make that the regulars at

the County Line Café give visitors odd looks and the throngs in Grand Central hardly notice each other? In November 2004, Americans from Galax to Grand Central will be choosing between George W. Bush and John F. Kerry in one of the most pivotal presidential elections in American history. Since the times of Jefferson and Hamilton, the differences between places like Galax and Grand Central have been large, and their contemporary political implications are still larger.

Fighting for Middle Ground

The aforementioned 2000 electoral map, split between the Republicans in red and the Democrats in blue, results from the fact that American presidential politics centers around two key institutions: the two-party system and the Electoral College. When you put these two together, you get two equally important concepts: swing voters and swing states. Few Americans need a refresher course on how this plays out, seeing as the controversy surrounding the 2000 election provided all of us with a lasting impression of just how it works. That being said, swing voters in swing states will undoubtedly play an important role in deciding this year's bout between George W. Bush and John F. Kerry.

It would be reductive, however, to describe this election as simply a swing state contest in a post-9/11 world. This election has truly monumental implications for Galax, Grand Central and beyond. As with most presidential elections, both candidates will try to distance themselves from stereotypes that limit their universal appeal while, at the same time, trying not to alienate their bases. Therein lies the problem, however. The Bush administration seems to have elevated the 2000 split to an unprecedented level. Only slightly kidding, pollster John Zogby has gone so far as to describe the polarization between those who love the former governor of Texas and those who hate him as comparable to the Civil War. Taming his rhetoric just a little, Zogby has repeatedly said, "This is a 50-50 nation," and he is not alone in his view. As has already been seen, both candidates will seek to pin each other with particular stereotypes that have tremendous implications for this election, as well as for the faces and ultimate fates of both major parties. Only this time, the historical implications seem dramatically more important than in 2000. To come full circle, George W. Bush and John F. Kerry will attempt to formulate coalitions with just the right combination of Galax and Grand Central in the hopes of breaking an unprecedented political stalemate.

Only One Cowboy Left Standing

As the challenger, John Kerry has to resurrect a party that has drifted too far toward the complexity of Grand Central. Thus, the Kerry campaign training manual ought to begin with something like this: "Being a Democrat does not always mean you are from Manhattan, like Michael Moore and eat sushi." As nice as all those things might be, not everybody understands them, and in a democracy, getting things done means getting people to understand, including those people who frequent places like the County Line Café. As a result, Kerry would be wise to cultivate his image around two characteristics: hope and strength. Bill Clinton was successful because he inspired people from Galax to Grand Central with simple lines from the 1992 Convention like, "I believe in a place called Hope." Although Clinton was making convenient rhetorical use of his hometown of Hope, Arkansas, this line could just as easily have been lifted from a John Wayne classic. John Kerry ought to take note that this kind of message is far more palatable for most Americans than the Northeastern prep school, smart-kid-in-class type of attitude that was the end of Al Gore. A message of hope needs little explanation to resonate, while esoteric policy talk often consists of Senate-speak terms like the Kyoto Protocol, unilateralism and no-bid contracts. As an educated Democrat, John Kerry has a right to angrily criticize the Bush administration's record with regard to these topics. As a candidate, he should not let this anger overshadow the defining message of optimism upon which the Democratic Party prides itself.

The Kerry campaign also ought not shy away from a fight with the Bush administration. In this battle of American iconography, this is no time to back down. After all, the Clinton campaign got into its fair share of scraps with the Republicans while managing to succeed themselves. What made the folks at the Clinton campaign so successful was that in the process of standing up to the nasty politics of the Republican party, they employed the valuable stratagem of keeping the candidate and his foot soldiers positive, while letting mas-

"As a candidate, Kerry should not let anger at the administration overshadow the the defining message of optimism upon which the Democratic Party prides itself."

"The differences between worlds like small-town Galax and the bustle of Grand Central Station have been large, and their contemporary political implications are larger yet."

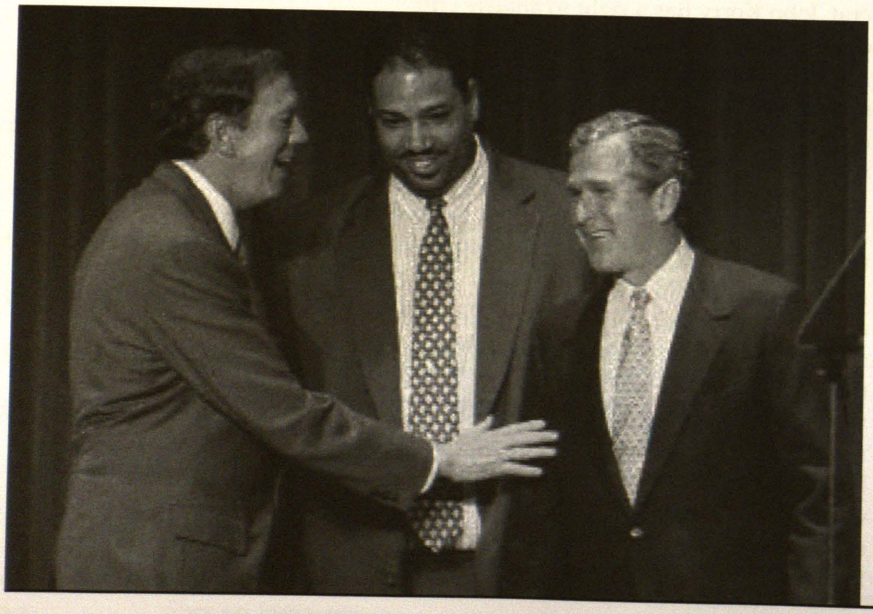
terminds like George Stephanopolous and James Carville fight fire with fire from the comfortable confines of the campaign press office. Thus, Bill Clinton could inspire without looking like a weakling.

As the incumbent, George W. Bush will tend to the powerful personality cult that has arisen around his cowboy image. Bush beat Al Gore because he convinced enough people in key states that he was just a simple cowboy trying to do the right thing. The construction of this image was brilliantly orchestrated and well executed, as it spoke simply to voters' deeply held convictions about American cultural identity. A candidate that was once thought by some as just a bumbling idiot has successfully draped himself in the most powerful of American images, the cowboy. This image has been particularly useful since 9/11, when all Americans were in need of strong leadership. Although a significant portion of Americans believe Bush might have gotten carried away with this cowboy persona, specifically in Iraq, an equally significant amount hope to see him ride right on in to a second term. Certain discrepancies between the Bush presidency and the Bush philosophy, however, have set the stage for the Kerry campaign to make this election as square as a shoot-out at sun-up.

In Old West terms, the Kerry campaign must call Bush's bluff. For all of Bush's talk about being a Christian cowboy, the Kerry campaign is itching to throw stones closely linked to the likes of Enron and Halliburton. Now that Enron has been run out of town after being the largest contributor to his first campaign, many believe Bush has been busy dispensing political favors to other campaign contributors in the process of amassing the biggest campaign war chest in history. Such allegations of crony capitalism are not new, but the Bush administration has been unsuccessful in dispelling these murmurings. For instance, Halliburton — a firm Vice President Dick Cheney used to run — received a $1 billion no-bid contract for upcoming projects in Iraq. In spite of all these allegations of supposedly unethical dealings, the Bush Administration maintains an amazing stranglehold on its right-wing, moralistic base. Through promising a constitutional amendment banning gay marriage, nominating ardently pro-life justices and maintaining an image of piety, Bush has given the self-proclaimed Moral Majority just what they need to keep marching on in their sheriff's name.

So far, the Bush campaign has played this game brilliantly, successfully sealing up any fissures in their candidate's powerful image. They have fostered within their base a reluctance to ask questions by appeasing them. But they have also taken a definitively proactive approach against those who dare to criticize them. Through calculated tactics, Karl Rove and company have made an effort to silence those that claim to be calling their man's bluff, specifically Richard Clarke and Paul O'Neill. The numerous allegations launched against these men have certainly undermined their credibility. Consequently, in spite of these former allies' attempts to suggest otherwise, Bush still has most people believing that he is a simple, honest man with a plan. Whether true or not, the Bush campaign continued projection of this image leaves the Kerry campaign with a difficult fight. Questioning a cowboy's honesty is a high-stakes maneuver, and failure could quickly force Kerry's team out of town.

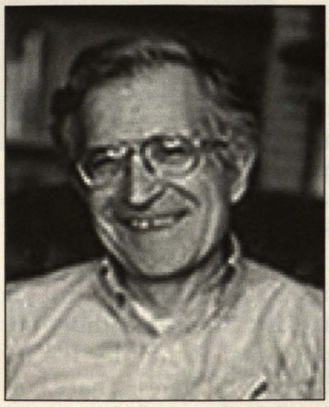
Thus, in this uncertain campaign season of competing Americas, competing candidates and competing images, perhaps there really is no more singularly American description of the upcoming election than the old-fashioned shootout. If there is going to be a new sheriff by sundown, however, the Kerry campaign better learn to call a bluff. P



Entering the city limits: *President George W. Bush, shown here with New York Gov. George Pataki (left) and Aaron Dare of the Urban League of Albany, has tried to broaden his voting base with "compassionate conservative" policies.*

IRAQ AND AMERICA'S INTERNATIONAL LAW

An Interview with Professor Noam Chomsky



Noam Chomsky, a professor of linguistics at the Massachusetts Institute of Technology, has published extensively on politics since the Vietnam War. A leading critic of U.S. foreign policy, he spent his undergraduate and graduate years at the University of Pennsylvania and has received honorary degrees from numerous other universities ranging from Cambridge to Harvard. *The Politic* interviewed Professor Chomsky concerning American foreign policy aims and new conceptions of international law.

What do you believe are the primary sources of international law?

The foundation of contemporary international law is the U.N. Charter, which flatly forbids the threat or use of force with two exceptions: (1) explicit Security Council authorization, and (2) self-defense against "armed attack" — a very narrow and circumscribed notion — until the Security Council has a chance to respond. Obviously, neither (1) nor (2) holds in practice. This fact is not my belief. It is not controversial. While lawyers are seeking to contrive elaborate ways around all of this, the more honest ones just concede it. For example, Michael Glennon [a professor of international law at the Fletcher School of Law and Diplomacy at Tufts University] writes that of course the U.S. violates international law all the time, and is right to do so, because it's "hot air" and the U.S. is an "enlightened state" (by declaration) and therefore should not be inhibited in its reliance on force by absurdities like the U.N. Charter and international law.

Did the United States have a legal right to go to war with Iraq according to current norms of international law?

Certainly not. I mean that this was an aggressive war in violation of international law. You can make up all kinds of excuses, but you can make up excuses for anything. In fact, there is a big crisis going on in Britain because information was just released that the legal advisor apparently had informed the government that the war was illegal and was compelled to back down and find some excuse. But there is nothing in international law that permits open aggression against another country.

Given the United States' legal justifications for the war in Iraq, what do you think were the other major driving forces leading toward war? How did these forces contribute to the legal reasons for the war?

The legal reasons do not exist, so we can't ask that. But there were several major reasons for the war. One which is perfectly obvious: Iraq has the second largest oil reserves in the world. The U.S. wants to make sure that nobody else gets the inside track on controlling them, as Russia and France were already doing. The expectation is that the U.S. is now working for the creation of a client state which will have some sort of nominal sovereignty, but with the biggest U.S. diplomatic mission in the world, U.S. military bases and enough U.S. power to ensure that the government does what we want it to do. That means greatly enhancing U.S. control over the massive energy resources of the Gulf region. Also, one effect of the Afghan war is that the U.S. now has a big permanent military base in Afghanistan and bases in Uzbekistan and elsewhere in central Asia. The Uzbekistan government has just announced it is going to grant the U.S. permanent basing rights. All of this is connected to a complicated international game over who controls the world's energy resources. The main ones are the Persian Gulf region and Central Asia, which is significant but secondary. Now the source of international conflict is over which way the pipelines are going to go, who is going to control them and who is going to decide. This is a major issue in world control and has been since the Second World War. This is a major piece, but only one piece of a very substantial pattern.

Another reason is that after announcing its national security strategy, [the Bush administration] had to do something to make people take it seriously. With a fraction of the troops, they could have gone into Eastern Congo

"The United States had no more moral right to go to war with Iraq than Iraq had a right to conquer Israel to stop the oppression of Palestinians."

and stopped massacres of millions of people, but what do you get out of it? This way, if you go in, you have a real prize.

In your opinion, did the U.S. have a moral right to go to war with Iraq, and how are American morals influencing new international law norms?

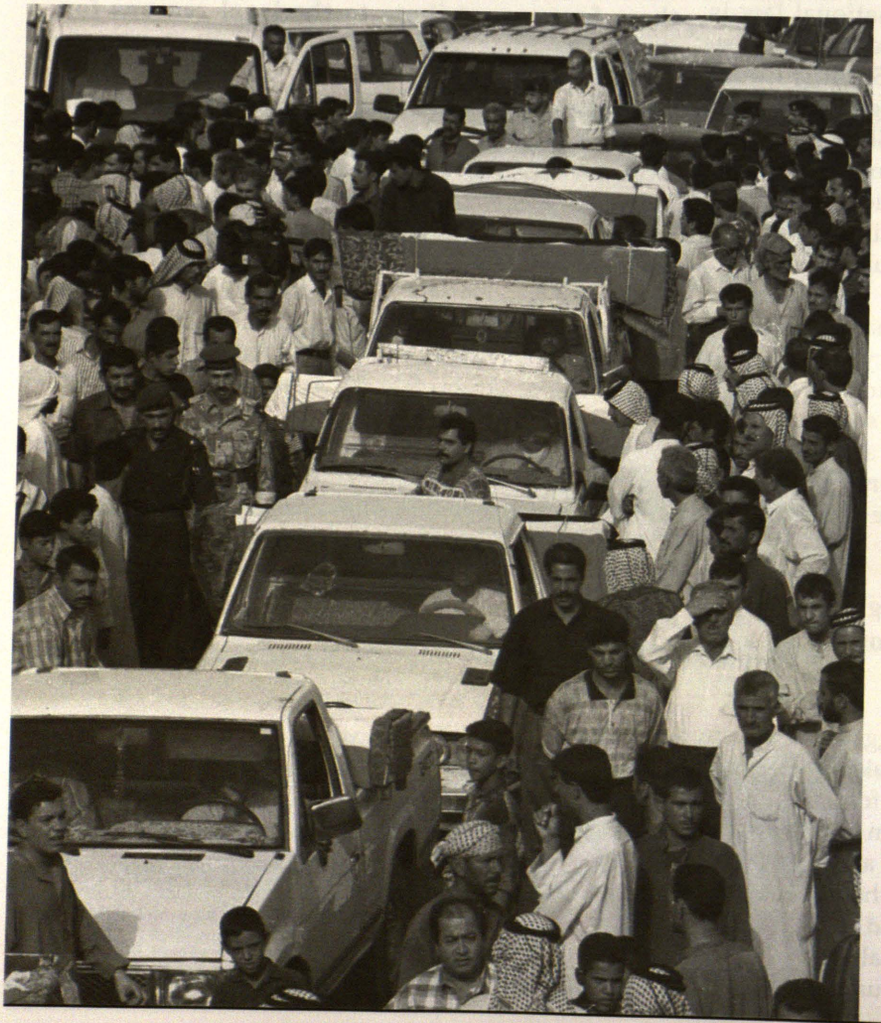
The United States had no more moral right to go to war with Iraq than Iraq had a right to conquer Israel to stop the oppression of Palestinians. There's no moral right to use force to interfere in the affairs of other people. If the Iraqi population had asked the U.S. to intervene, then you might have had a right. Like in South Africa, where the South African population wanted to get rid of the apartheid regime: if they had pleaded with the West to invade, you could say there would be a moral right. But such issues don't arise. Governments have no moral goals; human beings do. Human beings are what we call moral agents. We do things because we think it's right or wrong. Governments are just big, powerful institutions that act in the interests of domestic centers of power. They talk about right and wrong, but they never mean anything by that.

What sort of precedent in international law did the war with Iraq set?

Well, what the U.S. government hoped was that it would set the precedent that Henry Kissinger described very accurately: It would tear to shreds any remnant of international law, it would eliminate the concept of sovereignty of states, and it would grant the United States the right to use force at will without credible pretext and without authorization, pursuing its own interests. But as Kissinger insisted, this right must not become a universal principle. It's restricted to the United States. That's correct, Hitler would have agreed.

Is Iraq a unique case, or will Iraq be the first of many targets under the new norms of international law championed by America?

Well, my suspicion was that by now the U.S. would have moved on to invade the Andean region, maybe some other part of the Middle East and so on. It's not happening, and it's not happening because the occupation was such a miserable failure, which is a real shock. It should have been the easiest occupation in history. The occupation ended the sanctions which were destroying the country and got rid of a dictator who the population probably would have gotten rid of anyway if it hadn't been for the sanctions. The people were not able to oust Hussein on their own without meaningful support for a militant resistance. The United States, however, has the unique advantage of enormous resources, which was one of the reasons why it seemed like the occupation could not fail. Now, the fact that the occupation has been such a failure is just a shock to everyone who is watching. I was talking not long ago to a very experienced high official in one of the major NGOs who has been in many of the worst places in the world, and just came back from Baghdad. He said he has just never seen such a combination of, in his words, "ignorance, arrogance and incompetence." They just couldn't do the simplest thing, and the result is Iraq has fallen apart. And that has impeded the likelihood of further such actions. P



The victims of an illegal war? *Residents of Mosul carry coffins containing the bodies of Iraqis allegedly killed by U.S. troops.*

WHEN BONESMEN FIGHT

A Reflection on Democracy in America

by Tom Hayden

I hope some journalist has the courage to ask Senator John Kerry (Skull & Bones, '65) and President George W. Bush (Skull & Bones, '67) whether they have any qualms about belonging to a secret, oath-bound network since their college days at Yale. Did they discuss Skull & Bones in code when President Bush called Senator Kerry to congratulate him on his primary victories? Will they agree not to leave the room if a reporter blurts out "322," coded references to Greek orator Demosthenes' birthday and Skull & Bones' founding?

Am I scratching the blackboard yet, dear reader? Or are you smugly dismissing these questions as paranoid and unsophisticated?

I don't consider myself a conspiracy theorist, but is it really acceptable that four decades after the egalitarian 1960s, and some 225 years since the Declaration of Independence, the American voters' choices in 2004 are *two Bonesmen?* The lesson is that aristocracy still survives in democracy.

I was a member of a secret society at the University of Michigan during the same era as Bush and Kerry and can testify that these experiences are profound and lasting. As a junior I was tapped for the Druids, which involved a two-day ritual that included being stripped to my underpants, pelted with eggs, smeared with red dye and tied to a campus tree. These humiliations signified my rebirth from lowly student journalist into a Big Man on Campus.

Soon, however, I became alienated. None of the bonding could make me feel that I actually belonged. Perhaps I was an outsider by nature, an Irish Catholic descendant of immigrants, the first in my family to attend a university. The secrecy had one purpose, as a source told Alexandra Robbins for her book on Skull & Bones. It was "to make the other people who didn't get in feel bad." But even as an insider, *I* felt bad, undeserving and resentful. When I was tapped in my senior year for the most prestigious secret society, Michigauma, I decided, instead, to hide out in a girlfriend's apartment. I became the first refusenik in Michigauma history. I felt like something was wrong with me, that I didn't have the right stuff, that I was blowing my future.

In the summer of 1960, I experienced the same self-doubt at the convention of the U.S. National Student Association (NSA). At the time it was controlled by an older clique of student leaders who seemed, as they say, to the manor born. On the one hand, ambition inclined me to challenge the clique by running for national affairs vice president, a path I would eventually follow twenty years later. On the other hand, the radical civil rights and student movements, like the fledgling Students for a Democratic Society (SDS), were pulling at my heart. Should I work within the establishment or create something new and risky?

One night I came across a yellow pad left on a desk by the NSA leadership. At the top of a chart was written "Control Group." On the left was my name and that of Alan Haber, a founder of SDS. On the right was a box marked "YAF" — Young Americans for Freedom, the conservative group founded at Yale by William F. Buckley (Skull & Bones, 1950).

Seven years later, it was revealed that the CIA secretly controlled and funded the NSA, and that former editors of the Michigan *Daily* were among the spooks they had recruited. I subsequently went south as a Freedom Rider and drafted the SDS Port Huron Statement as an active member of the civil rights movement. In those years, George W. Bush never seemed to question authority, while John Kerry's loyalties were shaken by war as a Navy lieutenant shooting up the Mekong Delta. Yet they both belonged to the vast, safe, surreptitious affirmative action program for "good old boys."

It seems like a lifetime since those days, but we still suffer from many gaps based on privilege. The political system is a moneyed oligarchy underneath its democratic trappings. The vast majority of voters are like fans in the bleachers: We participate from the cheap seats and are supposed to enjoy our place, and vote for whichever Bonesman we prefer. Our taxes even subsidize their corporate box seats. Sometimes Bonesmen fight over status. For example, about 75 years ago, Dwight Davis, the secretary of war, created the

Tom Hayden is currently a professor at Occidental College and was a visiting fellow at Harvard's Institute of Politics last fall. A leader in the student activist movements of the 1960s, he was charged as one of the "Chicago Seven" following protests at the 1968 Democratic National Convention.

"The political system is a moneyed oligarchy underneath its democratic trappings."

Davis Cup. George H. Walker, great-grandfather of George W. Bush, volleyed back by establishing the Walker Cup.

The differences today between Bush and Kerry, nonetheless, are about as serious as they could be. Karl Marx would describe the split as a contradiction in the ruling class. Bush is the unilateral builder of empire, while Kerry stands for the multilateral alliances long preferred by most Bonesmen. Though both the Cowboy and the Brahmin may be quarreling members of the same old club, their differences are existential for the rest of us.

Ralph Nader doesn't see this vision of reality. Instead he argues that the two parties are a duopoly within the same plutocracy. Perhaps Nader is nursing resentment over not being tapped himself, but his is a dangerous blindness. The differences between Bush and Kerry over Supreme Court appointments, religious fundamentalism, civil rights, the environment, John Ashcroft and the future of Iraq are elemental, dividing the two national parties at the constituency level. Bush genuflects to the Christian Right while Kerry sings Kumbaya. The Bush people are frightening and destabilizing, which is why the CIA types seem to prefer Kerry (covertly, of course).

For the record, this November I am voting with the CIA. Kerry represents the lesser evil in the choices before us. But like Ralph Nader, I want democracy to mean more than a choice between two dueling Bonesmen and their major donors. I still stand for participatory democracy, the original 1962 vision of the SDS which grew from our generation's experience in organizing among the excluded from the Deep South to the Peace Corps. Students in those days were drafted for war but were considered too immature to vote. Southern blacks and Mexican immigrants could be sharecroppers in the fields, but not equal citizens in the ballot box. For us, democracy meant who had the most votes, not who controlled the most money. It meant the free flow of information, not suffocation under corporate advertising and media.

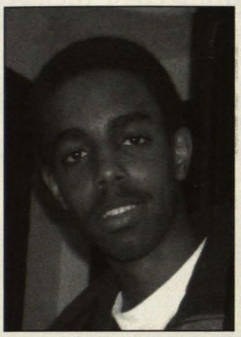
We have always wanted more than the right to choose between two candidates already vetted by the establishment. We have always wanted a more direct voice in the decisions that affected our lives. We have always wanted a democracy of participation, not a democracy regulated by secret societies. We have always wanted all of the closets emptied.

We are a more open and democratic country as a result of the 1960s and earlier generations of radicals. We owe the abolitionists for the end of slavery, the suffragettes for the right to vote, the populists for regulation of Wall Street, the industrial strikers for collective bargaining and the environmentalists for cleaner air and water. In this election, the anti-war and global justice movements have helped shape the agenda over Iraq and trade. And the gay and lesbian community is turning marriage into civil disobedience.

Yet it remains the peculiar character of America's elite to absorb reform from below while remaining atop the pyramids of power. When a majority of Americans still feel inferior to Ivy League candidates or identify vicariously with their dramas, we do not live in a democracy psychologically. That must eventually change. Closeted dynasties should have no moral legitimacy in a democracy — which is why they have become more and more secret.

Two years ago, students at the University of Michigan broke into, occupied and exposed the secret space of Michigauma, finding stolen Indian artifacts among the items hidden there. Michigauma, in response, moved off campus. When I heard the news, I wished that I had done that long ago instead of making such a private and ambiguous protest. It took a new generation to smash the old idols. Perhaps democracy *is* coming to America.

Two of a kind? *While John Kerry (below) and George W. Bush have very different political viewpoints today, both were members of the secret society Skull & Bones at Yale.*



A BEACON FOR ISLAMIC RADICALISM

France's Costly Decision to Remain "Secular"

by Andom Ghebreghiorgis

To some it is a symbol of male dominance, sexism and Islamic fundamentalism. To others it is a reminder of faith, conviction and modesty. Concerns surrounding a small headscarf have divided France. In today's post-9/11 world, distinguished by a constant fear of terrorist attacks and the presence of militant Islam, the Muslim *hijab*, or headscarf, has sparked controversy over the enforcement of France's strict form of secularism, *laïcité*. This debate has exacerbated France's relations with its already excluded and disaffected Muslim community. With the already existing plethora of problems concerning ethnic and religious relations, France's unjust, conservative policy alienates those who already feel left out of society. As a result, that which we must assume is the goal of the French government – integration – might prove to be too difficult a task. Furthermore, a lack of Muslim assimilation has the potential to erupt into Islamic radicalism.

It did not take long for displeasure and dissatisfaction with the government to turn into what the administration considers viable threats. The chief editor of the Paris daily *Le Parisien* recently received a threatening letter from a previously unknown group calling itself the "Servants of Allah the Mighty and the Wise." The letter stated that the group plans to take action against a bill recently passed in the National Assembly that banned all Muslim girls from wearing headscarves in public schools. It read: "You have let loose on yourself a river of hate and ignorance, not only toward Muslims but toward Islam itself. We will plunge France into terror and remorse, and we will make blood run to your borders ... Europe is a new war zone for the *Jihad*. Know that our fight has only just begun."

Even before the recent terror attacks in Madrid, the French government was very concerned about terrorist networks in France and Europe. France has been monitoring and containing militant Islam for years. In 1995 and 1996, Algerian terrorists planted deadly bombs in Paris and Lyon. Since then, France has laid out plans to deploy all of its security forces at times of high alert. Other than Turkey, France has Europe's largest Muslim population (about 5 million, mainly of North African origin). With Islam possessing such a strong foundation in the country, the French government has tried to contain the growing fundamentalist threat; as a result, the country has long kept mosques and underground prayer halls under surveillance. Since September 11, there have been some 150 arrests in France linked to Islamic terrorism.

In a major speech on December 17, 2003, French President Jacques Chirac underscored the real fear behind the headscarf ban — militant Islam. He said that France's secular republican values were "not negotiable." He proposed to pass a law (the bill has since been passed) banning conspicuous religious symbols in state schools, saying, "The danger is that of letting loose centrifugal forces, the exaltation of specific interests that separate people. Division, discrimination, confrontation – that is the danger ... The Islamic veil — whatever name we give it — the *kippa* [a Jewish head-covering] and a cross that is of plainly excessive dimensions: these have no place in the precincts of state schools. State schools will remain secular. For that, a law is necessary."

The French government today is the target of much resentment and hostility from Muslim people worldwide. This fact is in stark contrast with the situation one year ago, when French disapproval of the American invasion of Iraq was in accord with the world's Muslim population. There should be no surprise, however. The banning of the headscarf does nothing but further separate observant Muslims from mainstream French society. The bill outlawing headscarves has made the danger Chirac fears real. Terrorists and killers are opportunistic rather than strategic. The French government has let loose "the centrifugal forces that

Andom Ghebreghiorgis is a freshman in Saybrook College at Yale University and associate editor of The Politic.

"France's unjust, conservative policy is alienating those who already feel left out of society."

separate people"; whatever reaction takes place, it is France that bears responsibility.

It is truly ironic that an underlying reason for the ban on religious symbols was to curb a rise in Islamic radicalism and unify a divided country. Many French Muslims already feel disillusioned with their country. Their lives are wholly different from most Frenchmen: Muslim ghettos are rife with gang warfare, delinquency and drug abuse. The double-consciousness among French Muslims is strong, as many do not feel "French" at all. To many Muslims, the banning of the headscarf was simply another attack on Islam by a racist government and nation.

At the same time, secularists and feminists are left bewildered that girls now choose to wear the veil that their mothers fought to discard. It seems that resistance to the law is merely defiance by an excluded community seeking to assert their culture in their country. The voluntary wearing of the headscarf should not be thought of as a threat to a political institution, but a choice made out of personal conviction. Moreover, it is human nature to be intrigued by and to pursue that which is outlawed. Iranian women unveiled themselves because they felt they had the right to do so, and no authority could force them to do otherwise; the same logic applies to French women. However, French Muslims feel that the overly strict *laïcité* is impinging on their right to choose.

Many Muslims are baffled by the headscarf ban, as they see *laïcité* affecting them differently than other religious groups. France has maintained a strict separation of church and state for over 100 years. Article 1 of the Constitution states: "France shall be an indivisible, secular, democratic and social republic. It shall ensure the equality of all citizens before the law without distinction of origin, race or religion. It shall respect all beliefs." The consensus around secularism, however, was reached after catastrophic events, including persecution and wars. The effort to keep France from being the "elder daughter of the Catholic Church" ensures that French secularist tendencies remain strong. Now, however, opponents of the headscarf ban argue that Chirac's strict interpretation of *laïcité* is discriminatory in the other extreme: it discriminates against religion. In Islam, the headscarf, or *hijab*, is not analogous to the Jewish yarmulke or Christian cross. For many Muslims, the headscarf is not only a symbol of religious expression; it is a religious obligation. According to the interpretation of some Muslim women, it completes an overall commitment to dress modestly, as mandated in the *Qur'an*. The proposed prohibition on headscarves in France, like laws in some Muslim countries that enforce the wearing of headscarves in school, violates

An enemy of the state? *Hilal, an 11-year-old girl, arrives at a school in Thann, France where teachers protested a decision to let her attend classes with her head covered.*

Defenders of religion, or attackers on secularism: *In February, protestors of the French ban on headscarves in schools demonstrated on the streets of Lyon.*

international human rights law which says that state authorities must avoid coercion in matters of religious freedom. Protecting the rights of all citizens does not undermine secularism; rather, it demonstrates ethnic diversity, which France obviously has not been ready to deal with. While it is legitimate for schools not to advocate or promote religion, denying citizens their religious rights in the name of secularism is taking France's legitimate secularist interests too far.

Beyond its discriminatory nature, the "ban on conspicuous religious symbols" could have additional adverse effects. Girls who wish to cover their hair and who are prohibited from doing so in public schools are at risk of not going to school at all. Those Muslim immigrants that seek to cover their hair may be forced to attend expensive private schools, a difficult venture since the Muslim community in France is at the bottom of the socioeconomic ladder. Moreover, the flight of Muslims to Islamic schools does not help the goal of integration and assimilation that the French government claims to be seeking.

Disenchantment among French Muslims is high. There are no Muslims in Parliament and no Arab mayors in the whole country. As unemployment, crime and the already prevalent anti-Muslim sentiments increase, France's Muslim community will become further secluded. As a result, militancy and radicalism will come to be seen as the only redeeming options available as the common Muslim perception will be that French society does not offer anything to them. The idea that wearing a headscarf is synonymous with fundamentalism is ludicrous and the recent bill will only boost anger, resentment and, consequently, fundamentalism among many French Muslims.

France has created radicals among citizens who never saw the government as a threat to their identity. Further segregating France's Muslim community will only increase such radicalism. Europe must realize that the sole solution to the perceived Islamic threat is integration. Anything less will result in that which France is attempting to avoid: Islamic fundamentalism.

"France has created radicals among citizens who never saw the government as a threat to their identity."

MILITARY SERVICE:

point

More to a Candidate Than His Service Record

by Brian Cook

The list of prerequisites to serve as U.S. president inherently depends both upon the state of the union at the time of the election and the expectations for the next four years. This is perhaps the reason questions of military service seem so pertinent this year.

Reflecting on the 2000 election, one remembers that then-Governor George W. Bush's National Guard record was challenged, and even the alleged missing service time was discussed. The Democrats could not capitalize on the issue, however, for two reasons: candidate Al Gore's record as a photographer was no more impressive, and no one anticipated the events that would transpire less than one year later, bringing military leadership to the fore. The two contenders for the office both acknowledge this current importance of military issues, and to some extent, each points to his personal service to justify his leadership of a nation at war. Politically speaking, this makes a strong case for the public; practically, it matters little, if at all.

In this election, each candidate has served in the military. There is, however, no question that their specific actions varied greatly. Senator Kerry served active duty in Vietnam, experienced combat, received multiple decorations and saved several lives. President Bush learned to fly fighter planes in the Texas National Guard. He did not enter combat, but still served a role that needed to be filled and one that runs the risk of death. He has been praised by commanding officers as having been one of the most capable men in his unit and he was honorably discharged. Both forms of service were important and have their own merits. They convey much about who the candidates were as young men and offer much fodder for the press to make comparisons and for the public to pass judgment.

One cannot discount the benefits of military training as preparation for leadership. The president, among his various administrative roles, remains first and foremost the commander in chief of the United States Armed Forces. Having personal experience with both officers and enlisted soldiers creates opportunity for better leadership at the top. Similarly, these men and women will more readily follow a commander whom they believe understands their experiences, how to keep them safe and how best to help them accomplish their mission. A candidate can convincingly state that his own military service proves his empathy. In reality, it provides no such guarantee, and there are other ways to achieve such comprehension. Just as a mailroom clerk is not automatically qualified to become CEO, a former lieutenant may or may not be the right choice for commander in chief.

A president does not need to fight personally, or even to know how the fighting is carried out. His job is to determine what task needs to be performed and pass orders down a chain of command for others to carry out. He must, by necessity, maintain a separation from actual combat, lest his personal involvement compromise the overall mission. In this respect, it is not a leader's past experience within the military that matters, but his interactions with the organization as an outside force.

No one can accuse President Bush of siding against the military. Granted, he does not have a legislative record, and speculating as to how he might have voted as a senator would be futile. As president, he has worked at every turn to aid the military. Among service families, he polls very high and is generally trusted to make the right decisions for the safety and effectiveness of our troops. Along with Secretary of Defense Donald Rumsfeld, he has worked to better prepare the military for current and future threats. Under their leadership, though the military is stretched somewhat thin, its overall strength has only increased.

Senator Kerry's record is less clear. As with many of his policies, he is regularly accused of playing both sides. He has, however, opposed military pay raises no less than twelve separate times in addition to voting against important weapons systems such as the Tomahawk cruise missile, the Bradley Fighting Vehicle and the Apache helicopter. And this is just the tip of the iceberg. He voted against authorizing $87 billion in funds for American troops currently in Iraq, though he claims "I actually did vote for the $87 billion before I voted against it." A legislative record such as this raises serious questions as to how he would behave in the Oval Office.

The key to a military presidency is relations with the U.S. Armed Forces, not history in them. Service can add to this qualification, but does not prove it. Above all, a candidate must show the resolve to unleash the most terrible military might the world has ever seen, as well as the wisdom to restrain it. The question is whether the two candidates can keep the politicization of their service to our country from becoming a disservice to national security and the future of our armed forces. P

Brian Cook is a junior in Pierson College at Yale University. He is a member of Yale Students for Bush.

counter point

MILITARY SERVICE:

An Important Prerequisite for Dangerous Times

by Zachary Jones

Thirty-five years ago, a member of the Viet Cong armed with a B-40 rocket launcher ambushed a United States Navy swift boat in the Mekong Delta. The boat's skipper, a tall, cerebral 25-year-old, steered to face the fire and rammed the vessel ashore right in front of his rocket-wielding foe, who spun and fled into the jungle. Not content to end the encounter at that, the overachieving young lieutenant (a Yalie, incidentally) leapt from the boat's bow in hot pursuit of the absconding foe. He caught the enemy fighter and shot him dead amidst the mangroves.

These are just some of the Vietnam heroics of Massachusetts Senator John F. Kerry. His experience in Vietnam — which earned him both Bronze and Silver Stars and three Purple Hearts — does not merely demonstrate how tough he is, although that much seems indisputable in light of the aforementioned anecdote. Kerry's military experience speaks for why he would make a great president.

At the very least, meaningful military experience — or, in George W. Bush's case, the lack thereof — is one factor to be weighed among others in evaluating a presidential candidate. But, as no one will argue more fervently than the Republicans, the post-September 11 era is different. The future of the United States and the emerging world depends on the success of the bitter struggle in which we are now enmeshed. Never before has experienced leadership in foreign affairs and, yes, military operations, been of more value in a president than today.

Juxtaposing images of the September 11 attacks with the shining visage of the president, the Bush team's opening advertising onslaught reflects an attempt to place the specter of global terrorism at the center of the 2004 campaign. Thus, Karl Rove et al. must try to trick the American public into thinking that George Bush is better qualified to lead the United States in the war on terrorism than John Kerry.

The case will not be an easy one to make. John Kerry, who chaired the Senate Subcommittee on Terrorism, Narcotics and International Operations and quite literally wrote the book on terrorism three years before September 11 (*The New War*, published in 1998), is hardly the national security neophyte George W. Bush was when he arrived at the White House. There is also the fact that Kerry, unlike Bush, has actually fought in a war.

John Kerry's experience in Vietnam is not significant simply insofar as it taught him to shoot a gun or steer a boat or even to be really tough. Rather, it is the insight into war as a brutal part of the human condition which Kerry the lieutenant took away from Vietnam that will prove valuable to Kerry the president. In his war notes, John Kerry wrote:

"When a good friend was hit and perhaps about to die, you'd ask if it was worth just his life alone — let alone all the others or your own ... But the ease with which a man could be brought to kill another man, this always amazed me ... How cheap life became."

John Kerry clearly left Vietnam with a profound appreciation for the preciousness of human life — an extraordinarily important quality for the commander of the most powerful military ever assembled. This is not to suggest that George Bush is callously indifferent to human life or that he lacks the capacity to care for the nearly 600 American soldiers killed in Iraq. But I do wonder whether the president is adequately concerned with the legal and moral obligation to wage war only as a last resort. When "Meet the Press" host Tim Russert asked Bush if Iraq was "a war of choice or a war of necessity," the president wrinkled his nose, squinted his eyes, called it an "interesting question" and asked Russert to "elaborate."

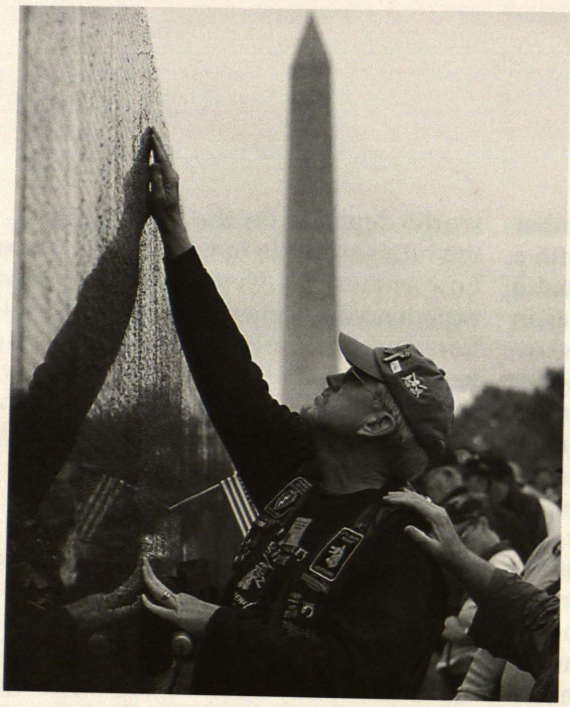
When Kerry says that he would never go to war when he wanted to, "but only when we have to," it is hard not to believe him. I trust Kerry only to send American troops overseas when justice demands it, not because I like him, but because he saw firsthand the horrors and misery of a war which justice did not demand. Kerry doesn't need to play dress-up on an aircraft carrier to show how tough he is. And he does not need anyone to "elaborate" on what necessity means or why it matters so much.

Zachary Jones is a junior in Davenport College at Yale University. He is the Coordinator of the John Kerry for President Campaign for Yale and the Greater New Haven area.

A NATIONAL REFERENCE POINT

The Political Legacy of the Vietnam War

Vietnam. To an American that word means far more than a small, impoverished, Southeast Asian nation. It refers to a conflict that ended an aura of American invincibility, demonstrating with the blood of American soldiers the limits of even a superpower's foreign policy. To invoke the Vietnam War is to refer to a national low point, yet it is by the Vietnam War that even today, thirty years after its conclusion, we define our foreign policy and even our leaders.



At the conclusion of the successful first Gulf War, President George H. W. Bush said famously, "The Vietnam syndrome is buried forever in the sands of the Arabian Peninsula." By the Vietnam syndrome, Bush meant the U.S. military's unwillingness to use force; he meant the American public's general queasiness at the sacrifice of American lives on the fields of war; most importantly, he meant the constrained American foreign policy that had haunted the country since the Vietnam War.

Bush, however, was far too optimistic. Just one year later, the Vietnam War became a campaign issue in the presidential election, as Republicans questioned Bill Clinton's military service – or, rather, the lack thereof – asking if someone who had never served in the military could act as commander in chief of the Armed Forces. In 1993, the United States withdrew its troops from the East African nation of Somalia, when the American public grew uneasy following the brutal killings of 18 American servicemen. Even after the successful Gulf War, the American public continued to use Vietnam as its foreign policy yardstick.

So it should come as no surprise that as the United States faces a series of foreign policy challenges today, the Vietnam War continues to play a prominent role in the national discourse. Senator John Kerry set himself apart from the other candidates running for the Democratic presidential nomination largely by referring repeatedly to his history of leadership that began when he was a young lieutenant, fighting on the Mekong Delta in Vietnam. Rarely would a campaign stop go by where Kerry would not speak of his "band of brothers," a group of fellow Vietnam veterans who pledged their support to his candidacy.

On the flip side of this coin, President George W. Bush's own military service record came under scrutiny, as Democratic National Committee Chairman Terry McAuliffe accused the president of being "AWOL" during his National Guard service. Further, Democrats asked why the president never served in the Vietnam War, questioning his ability to govern as a war time president having had war experience himself.

Most recently, the war in Iraq has drawn comparisons to the Vietnam War. Democratic politicians have seized upon the upswing in violence in Iraq, using Vietnam a as a tool to criticize the president's foreign policy. Senator Ted Kennedy, a Democrat from Massachusetts, claimed "Iraq is George Bush's Vietnam." Senator Robert Byrd, a Democrat from West Virginia, said about the insurgency, "Surely I am not the only one who hears echoes of Vietnam in this development." The Republican leadership, in turn, justified its policies by drawing distinctions from the Vietnam War. Arizona Senator John McCain, a Republican, stated that comparisons of Iraq to Vietnam are "totally false." In this conflict, there "is desire on the part of the people of Iraq to have their own democratic government ... and we have the capability militarily and politically to prevail we did not in Vietnam."

The media itself is no less complicit in perpetuating all of the talk of Vietnam. The lexicon describing the situation in Iraq is remarkably similar to that used to describe the Vietnam War. There is talk of the American-led Coalition's need to win the "hearts and minds" of the Iraqis on the ground; talking heads speak of the potential for a "quagmire" into which America pours its resources with little result; and finally there is discussion of the lack of an "exit strategy" from Iraq. All of these were, of course, phrases originally coined to describe the Vietnam War.

Regardless of how one feels about the merits of the War in Iraq, it is remarkable how much of American foreign policy and international leadership continues to be viewed through the prism of the Vietnam War. And this 30-year-old obsession is not likely to end any time soon. After all, in Washington D.C. – the nation's capital; home of memorials to Presidents Washington, Jefferson and Lincoln; the White House and the Smithsonian Institution – what site do visitors go to more often than any other? The answer, of course, is Maya Lin's Vietnam Veteran's Memorial. P

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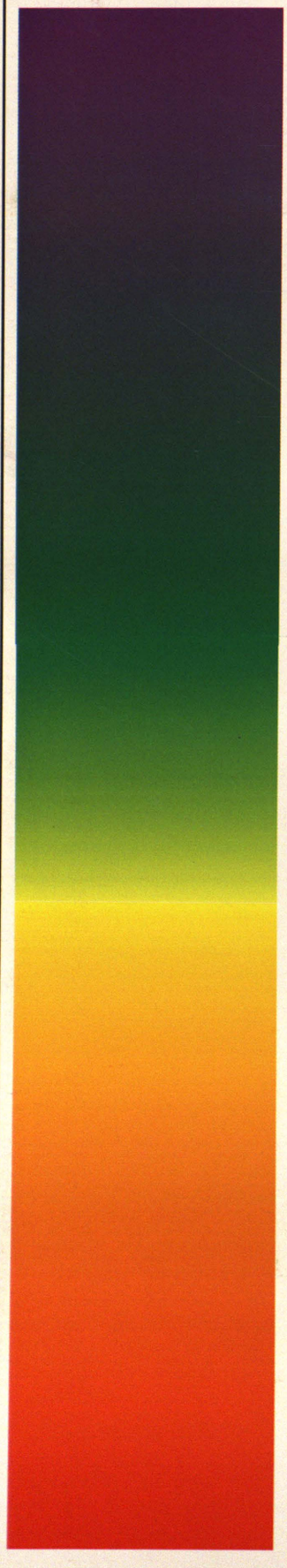

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